

SOLICITATION, OFFER AND AWARD			1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 7900)		▶	RATING	PAGE 1	OF 59	PAGES
2. CONTRACT NUMBER		3. SOLICITATION NUMBER N0017325R24400002		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		5. DATE ISSUED 5/23/2025		6. REQUISITION/PURCHASE NUMBER	
7. ISSUED BY NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 United States			CODE N00173		8. ADDRESS OFFER TO (If other than item 7)				

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION									
9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 2:00 PM EST local time 7/10/2025 (Hour) (Date)									
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.									
10. FOR INFORMATION CALL: ▶		A. NAME CANDICE TAWIAH			B. TELEPHONE (NO COLLECT CALLS) AREA CODE NUMBER EXTENSION			C. E-MAIL ADDRESS candice.a.tawiah.civ@us.navy.m	

11. TABLE OF CONTENTS									
(X)	SEC.	DESCRIPTION	PAGE(S)	(X)	SEC.	DESCRIPTION	PAGE(S)		
PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES					
X	A	SOLICITATION/CONTRACT FORM	1	X	I	CONTRACT CLAUSES	26-45		
X	B	SUPPLIES OR SERVICES AND PRICES/COSTS	3-6	PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACH.					
X	C	DESCRIPTION/SPECS./WORK STATEMENT	7	X	J	LIST OF ATTACHMENTS	46-47		
X	D	PACKAGING AND MARKING	8	PART IV - REPRESENTATIONS AND INSTRUCTIONS					
X	E	INSPECTION AND ACCEPTANCE	9-12	X	K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	48-53		
X	F	DELIVERIES OR PERFORMANCE	13-16	X	L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	54-58		
X	G	CONTRACT ADMINISTRATION DATA	17-21	X	M	EVALUATION FACTORS FOR AWARD	59		
X	H	SPECIAL CONTRACT REQUIREMENTS	22-25						

OFFER (Must be fully completed by offeror)									
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.									
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.									

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)		10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS(%)		
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NO.		DATE	AMENDMENT NO.	DATE	
		0001		6/13/2025			
15A. NAME AND ADDRESS OF OFFER-OR		CODE	FACILITY		16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)		
15B. TELEPHONE NUMBER		☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE		18. OFFER DATE	
AREA CODE	NUMBER						

AWARD (To be completed by Government)									
19. ACCEPTED AS TO ITEMS NUMBERED SEE SCHEDULE			20. AMOUNT		21. ACCOUNTING AND APPROPRIATION SEE SECTION G				
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 2304 (c) ☐ 41 U.S.C. 3304(a) ()					23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)			ITEM	
24. ADMINISTERED BY (If other than item 7)					25. PAYMENT WILL BE MADE BY CODE				
26. NAME OF CONTRACTING OFFICER (Type or print) Callan T. Walsh					27. UNITED STATES OF AMERICA (Signature of Contracting Officer)			28. AWARD DATE	

Section A - Solicitation/Contract Form

Command, Control, Communications, Computers, Intelligence, Surveillance and Reconnaissance (C4ISR)
Systems Design and Development

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

SECTION B NOTES

B-1 PAYMENTS OF FEE(S) (LEVEL OF EFFORT)

(a) For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Government shall make payments to the Contractor, subject to and per the clause in this contract entitled "Fixed Fee" (FAR 52.216-8) or "Incentive Fee", (FAR 52.216-10), as applicable. Such payments shall be submitted by and payable to the Contractor pursuant to the clause of this contract entitled "Allowable Cost and Payment" (FAR 52.216-7), subject to the withholding terms and conditions of the "Fixed Fee" or "Incentive Fee" clause, as applicable. Fee paid per hours shall be based on total fee dollars divided by total hours to be provided. Total fee(s) paid to the Contractor shall not exceed the fee amount(s) set forth in this contract. In no event shall the Government be required to pay the Contractor any amount in excess of the funds obligated under this contract.

B-2 CONTRACT TYPE

This is a cost-plus-fixed-fee (CPFF), definitive contract vehicle. The contract shall have a 12-month base period and four (4) 12-month option periods.

B-3 FIXED FEE

Fixed fee is to be proposed and awarded on R&D Labor CLINs only.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	R&D Labor. Base Year. The contractor shall provide Research and Development efforts described in the Statement of Work.				
0001AA	Holding SLIN. The listed Estimated Cost and Fixed Fee indicate the amount remaining for obligation. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
0002	ODCs. Material and Travel. Base year. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.				
0002AA	Holding SLIN. The listed Estimated Cost indicates the amount remaining for obligation. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item.	1	Lot		

	The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee				
0003	CDRLs. Data for CLINs 0001, 1001, 2001, 3001, 4001. The Contractor shall furnish all data as required by the Contract Data Requirements List, DD Form 1423 (Exhibit A). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee	1	Lot		
0004	Contractor Acquired Property (CAP) IAW FAR 52.245-1, the Contractor shall deliver all property (including, but not limited to, material, equipment, special tooling, and special test equipment) acquired, fabricated, or otherwise created in support of and using funds obligated under this contract to the Government. Pricing Arrangement: Cost No Fee	1	Lot		
1001	R&D Labor. Option Year 1. The contractor shall provide Research and Development efforts described in the Statement of Work.				
1001AA	Holding SLIN. The listed Estimated Cost and Fixed Fee indicate the amount remaining for obligation. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
1002	ODCs. Material and Travel. Option Year 1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.				
Option Line Item 1002AA	Holding SLIN. The listed Estimated Cost indicates the amount remaining for obligation. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 2001	R&D Labor. Option Year 2. The contractor shall provide Research and Development efforts described in the Statement of Work.				

Option Line Item 2001AA	Holding SLIN. The listed Estimated Cost and Fixed Fee indicate the amount remaining for obligation. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 2002	ODCs. Material and Travel. Option Year 2. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.				
Option Line Item 2002AA	Holding SLIN. The listed Estimated Cost indicates the amount remaining for obligation. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 3001	R&D Labor. Option Year 3. The contractor shall provide Research and Development efforts described in the Statement of Work.				
Option Line Item 3001AA	Holding SLIN. The listed Estimated Cost and Fixed Fee indicate the amount remaining for obligation. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 3002	ODCs. Material and Travel. Option Year 3. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.				
Option Line Item 3002AA	Holding SLIN. The listed Estimated Cost indicates the amount remaining for obligation. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 4001	R&D Labor. Option Year 4. The contractor shall provide Research and Development efforts described in the Statement of Work.				

Option Line Item 4001AA	Holding SLIN. The listed Estimated Cost and Fixed Fee indicate the amount remaining for obligation. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 4002	ODCs. Material and Travel. Option Year 4. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.				
Option Line Item 4002AA	Holding SLIN. The listed Estimated Cost indicates the amount remaining for obligation. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Cost No Fee	1	Lot		

Section C - Description/Specifications/Statement of Work

C-1 STATEMENT OF WORK

The work and services to be performed hereunder shall be subject to the requirements and standards contained in Exhibit A - Contract Data Requirements List, Attachment J-1- Statement of Work, and all other Attachments cited in Section J, which are incorporated by reference into Section C.

Requirements

C4ISR Recompete under current contract N00173-20-C-6002. The mission of Space Systems Development Department (SSDD) is to derive system requirements from mission requirements, develop architectures in response to the systems requirements, and design and develop systems, subsystems, equipment, and implementation technologies to achieve optimized, integrated operational space and ground systems.

Section D - Packaging and Marking

D-1 UNCLASSIFIED PACKAGING AND MARKING

All unclassified data and deliverable contract line items shall be preserved, packaged, packed and marked and must conform to normal commercial packing standards to assure safe delivery at destination.

D-2 CLASSIFIED PACKAGING AND MARKING

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM), DOD 5220.22-Mdated February 28, 2006 and the DD 254 - Contract Security Classification Specification.

D-3 MARKING OF SHIPMENTS AND REPORTS

The Contractor shall mark all shipments under this contract in accordance with the addition of ASTM-D-3951-18"Standard Practice for Commercial Packaging" in effect on the date of the contract. The Contractor shall comply with FED STD 313-F (Symbols for Packages and Containers for Hazardous Industrial Chemical and Materials) to the extent applicable.

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report: *

- (1) Name and business address of the Contractor
- (2) Contract number

Section E - Inspection and Acceptance

E-1 INSPECTION AND ACCEPTANCE

Inspection and acceptance of the final delivery will be accomplished by the Contracting Officer Representative (COR) designated in Section G of this contract. Inspection and acceptance will be performed at the Naval Research Laboratory, Washington DC. Constructive acceptance, in accordance with FAR 32.904, shall be deemed to have occurred on the seventh (7th) day after the final delivery.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.246-9	Inspection of Research and Development (Short Form).	Apr 1984		
Overall Contract Inspection/Acceptance Locations				

0001AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
0002AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
0003	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES

	Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
0004	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
1001AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 1002AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 2001AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES

	Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 2002AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 3001AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 3002AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 4001AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES

	Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 4002AA	Inspection and Acceptance Location Both Destination Instructions: To be performed by COR. DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil

Section F - Deliveries or Performance

F-1 Place of Performance

The principal place of performance of this contract shall be: Naval Research Laboratory, 4555 Overlook Ave SW, Washington, D.C. 20375.

Line Item	Delivery Schedule	Quantity	Address and POC
0001AA	Period of Performance From 29 Oct 2025 To 28 Oct 2026	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
0002AA	Period of Performance From 29 Oct 2025 To 28 Oct 2026	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
0003	Period of Performance From 29 Oct 2025 To 28 Oct 2030	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil

0004	Period of Performance From 29 Oct 2025 To 28 Oct 2030	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
1001AA	Period of Performance From 29 Oct 2026 To 28 Oct 2027	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 1002AA	Period of Performance From 29 Oct 2026 To 28 Oct 2027	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 2001AA	Period of Performance From 29 Oct 2027 To	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil

	28 Oct 2028		
Option Line Item 2002AA	Period of Performance From 29 Oct 2027 To 28 Oct 2028	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 3001AA	Period of Performance From 29 Oct 2028 To 28 Oct 2029	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 3002AA	Period of Performance From 29 Oct 2028 To 28 Oct 2029	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil
Option Line Item 4001AA		1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil

	Period of Performance From 29 Oct 2029 To 28 Oct 2030		
Option Line Item 4002AA	Period of Performance From 29 Oct 2029 To 28 Oct 2030	1 Lot	Place of Performance DoDAAC: N00173 CountryCode: USA NAVAL RESEARCH LABORATORY 4555 OVERLOOK AVE SW, WASHINGTON DC 20375-5328 WASHINGTON, DC 20375-5328 UNITED STATES Gil Chapman, COR Email: gil.a.chapman.civ@us.navy.mil

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984

Section G - Contract Administration Data

G-1 CONTRACTADMINISTRATION

In order to expedite administration of this contract, the following delineation of duties is provided, including the names and contact information, for each individual or office specified. Contact the individual/position designated as having responsibility for any questions, clarifications or information regarding the functions assigned herein.

(a) The Administrative Contracting Officer (ACO), designated in Block 24 on the Standard Form 33, will expedite administration of the contract and direct inquiries to the appropriate office listed below: None

(b) The Contract Administration Office (CAO) designated in Block 24 on the Standard Form 33 is responsible for all matters specified in FAR42.302(a) and DFARS242.302(a), except in those areas otherwise designated herein.

Contract Specialist - Candice Tawiah, Code 1330, candice.a.tawiah.civ@us.navy.mil, 202-875-0091

Contracting Officer - CDR Callan Walsh, Code 1330, callan.t.walsh.mil@us.navy.mil, (202) 781-2891

NRL Competition Advocate - NRLContracts@nrl.navy.mil

Security Matters, Contracting Officer Representative for Security, Code 1226, (202) 767-2240, DSN 297-2240, email security-group@nrl.navy.mil.

Safety Matters, Head Safety Branch, Code 3540, (202)767-2232, safety@nrl.navy.mil

Intellectual Property Matters - All subject inventions must be properly reported through the iEdison system at <https://www.nist.gov/iedison> as described in the award terms. For questions, please contact Associate Counsel (Intellectual Property), Code 1008.2, (202) 404-1558, or email patents@nrl.navy.mil.

Release of Data, Public Affairs Officer, Code 1030, (202) 767-2541, DSN 297-2541, email nrl1030@ccs.nrl.navy.mil. For FOIA information, see <https://www.nrl.navy.mil/Contact-Us/FOIA/FOIA-Request>.

(c) Inquiries regarding payment should be referred to DFAS at <https://www.dfas.mil/contractorsvendors/>.

(d) Contract administration functions withheld, additional contract administration functions assigned, or special instructions are set forth below:

(1) The function at FAR 42.302(a)(51), consent to the placement of subcontracts, is withheld from DCMA ACO administration.

G-2 CONTRACTING OFFICER'S REPRESENTATIVE (COR) -- FUNCTIONS AND LIMITATIONS

(a) ****To be updated upon award*** is hereby designated as the COR. Unless terminated sooner, this appointment is effective for the period of performance of this contract including any options, if exercised. COR authority may not be delegated. No change in COR assignment shall be made without written notice by the Contracting Officer, who will modify the contract to reflect the change of COR assignment. The Contracting Officer may designate assistant or alternate COR(s) to act for the COR by naming such assistant/alternate(s) in writing and transmitting a copy of such designation to the contractor via contract modification.

(b) The responsibilities and limitations of the COR are as follows:

(1) Providing technical direction and guidance as necessary with respect to the performance of work under this contract. Technical direction and guidance may be used to provide technical advice/recommendations/clarifications on the statement of work/specifications. It MAY NOT be used to tell the contractor how to perform the work.

(2) Submitting interim and final Contractor Performance Assessment Reports (CPARS) at www.cpars.csd.disa.mil/cparsmain.htm.

(3) Quality assurance of services performed or deliveries made.

(4) Inspection and acceptance of services or deliverables.

(5) Ensuring that Government-Furnished Property, to include any contractor use of on-site equipment and/or IT resources is adequately monitored and accounted for.

(6) Security requirements on Government installation, such as the request and retrieval of personnel security badges and vehicle passes.

- (7) Monitoring contractor's performance and promptly report problems and recommendations for corrective action to the PCO.
 - (8) Annually, furnish a written report on performance of the contractor to the PCO. And, if deemed necessary, attending a follow-up meeting to discuss.
 - (9) Attend post award conference, if conducted.
 - (10) Ensuring a copy of all Government technical correspondence, to include Technical Direction Memorandums /Guidance, is forwarded to the PCO for placement in the contract file.
 - (11) Monitoring of funds expended.
 - (12) Ensuring that the Contractor does not exceed the defined statement of work set forth in the contract.
- (c) Limitations: The COR is not authorized to take any action, either directly or indirectly, that could result in a change in the cost/price, quantity, quality, place of performance, delivery schedule, or any other terms or conditions of the contract. If, as a result of technical discussions, it is desirable to alter contract obligations or the statement of work/specifications, a modification must be issued in writing and signed by the Contracting Officer in order to effect such changes. No such changes shall be made without the express written prior authorization/direction of the Contracting Officer.

G-3 PAYMENT INSTRUCTIONS/ADMINISTRATION OF PRICED SLINs

It is anticipated that the research and development services performed under this contract will be paid for from multiple sources of funds. Priced subline items will be established as necessary to identify each accounting citation classification. The contractor shall coordinate with the COR to ensure invoices are submitted to the proper Priced SLIN for the work performed and being invoiced for. An unpriced informational CLIN was established, which indicates the remaining ceiling available, for that CLIN to support this effort for each base and option period, as applicable. Priced SLINs will be added to the appropriate informational CLIN as funding is obligated on contract, corresponding to a specific source of funds and ACRN. As a priced SLIN is added to the informational CLIN with funding, the corresponding information CLIN remaining ceiling note will be reduced by the same amount of the added priced SLIN. The note under the informational CLIN will always reflect the amount left to fund on contract. The aggregate of the priced SLINs will reflect the total funded amount on contract. The informational CLIN and priced SLINs, when added together, will NOT exceed the total negotiated cost- plus-fixed-fee originally awarded, unless subsequently modified.

G-4 TECHNICAL DIRECTION MEMORANDUM (TDM)

- (a) For the purposes of this clause, technical direction includes the following:
 - (1) Direction to the Contractor which shifts work emphasis between work areas or tasks, requires pursuit of certain lines of inquiry, fills in details or otherwise describes work which will accomplish the objectives described in the statement of work;
 - (2) Guidelines to the Contractor, which assist in interpretation of drawings, specifications or technical portions of, work description.
- (b) Technical instructions must be within the scope of work stated in the contract. Technical instructions may not be used to:
 - (1) Assign additional work under the contract;
 - (2) Direct a change as defined in the contract clause entitled "Changes";
 - (3) Increase or decrease the estimated contract cost, the fixed fee, or the time required for contract performance; or
 - (4) Change any of the terms, conditions or specifications of the contract
- (c) The TDM shall be written by the Contracting Officer's Representative (COR), with the original given to the Contractor and a copy retained in the CORs file. Technical direction may be issued orally only in emergency situations. If technical direction is issued orally, a TDM must follow within two (2) working days from the date of the oral direction. Amendments, corrections, or changes to TDMs shall also be in written format and shall include all the information set forth in paragraph (e) below.
- (d) A TDM shall be considered issued when the Government deposits it in the mail, or if transmitted by other means, when it is physically delivered to the contractor.

(e) TDMs shall include, at a minimum, the following information:

- (1) Date of TDM,
- (2) Contract Number,
- (3) Reference to the relevant portion or item in the Statement of Work,
- (4) The specific technical direction or clarification,
- (5) The type of work to be performed, i.e., (a) SETA support or (b) R&D work,
- (6) A reference to the appropriate CLIN or Sub CLIN,
- (7) The anticipated level of effort, materials and travel expected as a result of the TDM,
- (8) The JON, Program Element, and associated dollar amount, and
- (9) The signature of the COR

(f) CORs shall provide a copy of each TDM with the necessary increment of funds to the Contracting Officer for retention in the official contract file. CORs shall retain all files containing TDMs for a period of two (2) years after the final contract completion date.

(g) The only individual authorized in any way to amend or modify any of the terms of this contract shall be the Contracting Officer. When, in the opinion of the Contractor, any technical direction calls for effort outside the scope of the contract or inconsistent with this special clause, the Contractor shall notify the Contracting Officer in writing within ten (10) working days after its receipt.

G-5 INFORMATION AND COMMUNICATION TECHNOLOGY (ICT)

In accordance with Section 508 of the Rehabilitation Act of 1973 (29USC 794d), all ICT supplies and services provided under this contract must comply with the applicable accessibility standards issued by the Architectural and Transportation Barriers Compliance Board at 36 CFR part 1194 (see FAR Subpart 39.2). Information and Communication Technology (ICT) is defined at FAR2.101.

G-6 IDENTIFICATION OF AWARDEE PERSONNEL ON-SITE AT NRL

Pursuant to DFARS 211.106, Awardee employees shall identify themselves as contractor personnel by introducing themselves or being introduced as non-governmental personnel and displaying distinguishing badges or other visible identification for meetings with Government personnel. In addition, contractor personnel shall appropriately identify themselves as contractor employees in telephone conversations and in formal and informal written correspondence.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
--------------------	----------------------------

Pay Official DoDAAC	<u>TBD</u>
Issue By DoDAAC	<u>N00173</u>
Admin DoDAAC	<u>TBD</u>
Inspect By DoDAAC	<u>N0173</u>
Ship To Code	<u>N00173</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>Code 8100</u>
Service Approver (DoDAAC)	<u>N00173</u>
Service Acceptor (DoDAAC)	<u>N00173</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N00173</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

donna.m.dargan.civ@us.navy.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H-1 TYPE OF CONTRACT

The Government intends to award a cost-plus-fixed-fee (CPFF) definitive contract vehicle. The contract shall have a 12-month base period and four (4) 12-month option periods. This procurement is being solicited as a 100% small business set-aside.

H-2 KEY PERSONNEL REQUIREMENTS

(A) Certain skilled experienced professional and/or technical personnel are essential for successful Contractor accomplishment of the work to be performed under this contract. These are defined as "Key Personnel "as identified in Attachment 2 to this contract and are those persons whose resumes were submitted for evaluation with the Contractor s proposal. The Contractor agrees that such personnel shall not be removed from the contract work or replaced without compliance with paragraphs (b) and (c) hereof.

(B) If one or more of the key personnel for whatever reason becomes, or is expected to become, unavailable for work under this contract for a continuous period exceeding thirty (30) workdays, or is expected to devote substantially less effort to the work than indicated in the proposal or initially anticipated, the Contractor shall immediately notify the Contracting Officer and shall, subject to the concurrence of the Contracting Officer or his authorized representative, promptly replace such personnel with personnel of at least substantially equal ability and qualifications.

(C) All requests for approval of substitutions hereunder must be in writing and provide a detailed explanation of the circumstances necessitating the proposed substitutions. They must contain a complete resume for the proposed substitute, and any other information requested by the Contracting Officer or needed by him to approve or disapprove the proposed substitution. The Contracting Officer or his authorized representative will evaluate such requests and promptly notify the Contractor of his approval or disapproval thereof in writing.

(D) If the Contracting Officer determines that suitable and timely replacement of key personnel who have been reassigned, terminated or have otherwise become unavailable for the contract work is not reasonably forthcoming or that the resultant reduction of productive effort would be so substantial as to impair the successful completion of the contract or the services ordered, the contract may be terminated by the Contracting Officer for default or for the convenience of the Government, as appropriate, or, at the discretion of the Contracting Officer if he finds the Contractor at fault for the condition, the contract price or fixed fee may be equitably adjusted downward to compensate the Government for any resultant delay, loss, or damage.

(E) The following individuals are identified as key personnel:

- Database Engineer
- Infrastructure Engineer
- Program Manager
- Systems Engineer
- Senior Systems Engineer
- Software Engineer

H-4 REPORT PREPARATION

Scientific or technical reports prepared by the Contractor and deliverable under the terms of this contract will be prepared in accordance with format requirements contained in ANSI/NISOZ39.18-2005, Scientific and Technical Reports: Elements, Organization, and Design.

[NOTE: All NISO American National Standards are available as free, downloadable pdf(s) at <http://www.niso.org/standards/index.html>. NISO standards can also be purchased in hardcopy form from NISO Press Fulfillment, P. O. Box 451, Annapolis Junction, MD 20701-0451USA. Telephone U.S. and Canada: (877) 736-6476; Outside the U.S. and Canada:301-362-6904 fax: 301-206-9789.]

H-5 ORGANIZATIONAL CONFLICTS OF INTEREST

(a) Definitions.

The term "contractor" includes the Contractor and its employees, affiliates, marketing consultants (if any), consultants, and subcontractors at all tiers. "Organizational Conflict of Interest" ("OCI") means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. FAR 2.101. An OCI may result when (1)activities or relationships create an actual or potential conflict of interest related to the performance of the Statement of Work (SOW) of this Contract; or,(2) when the nature of the SOW on this Contract creates an actual or potential conflict of interest with respect to the Contractor in relation to a future acquisition.

"Marketing consultant," means any independent contractor who furnishes advice, information, direction, or assistance to an offeror or any other

contractor in support of the preparation or submission of an offer for a Government contract by that offeror. An independent contractor is not a marketing consultant when rendering-- (1) Services excluded in FAR Subpart 37.2; (2) Routine engineering and technical services (such as installation, operation, or maintenance of systems, equipment, software, components, or facilities); (3) Routine legal, actuarial, auditing, and accounting services; and (4) Training services.

(b) In accordance with the guidance in FAR Subpart 9.5, the Contracting Officer has determined that potentially significant organizational conflicts of interest(OCIs) could result if the Contractor is allowed to participate (at any level)in future Federal Government acquisitions that include requirements that may be established or affected by the performance of the Statement of Work (SOW) by the Contractor under this Contract.

(c) It is understood and agreed that the Contractor may be ineligible (unless expressly exempted as provided in FAR Part 9.5) to act as a prime contractor, subcontractor, or consultant or subcontractor to any prime contractor or subcontractor at any tier, for any future requirements (for services, systems, or components of systems) procured by any Federal Government activity where the Contractor, in performance of the SOW under this Contract, has provided or is providing support (as described in FAR 9.505-1 through 9.505-4) that establishes or affects future requirements or may affect the future competition.

(d) The Contracting Officer responsible for securing future requirements, in his/her sole discretion, may make a determination to exempt the Contractor from ineligibility as described in subparagraph (c) above provided the Contractor submits an acceptable mitigation plan.

(1) Items for consideration in a mitigation plan include the following: identification of the organizational conflict(s) of interest; a reporting and tracking system; an organizational conflict of interest compliance/enforcement plan, to include employee training and sanctions, in the event of unauthorized disclosure of sensitive information; a plan for organizational segregation (e.g., separate reporting chains); data security measures; and, non-disclosure agreements.

(2) The Government's determination regarding the adequacy of the mitigation plan or the possibility of mitigation is a unilateral decision made solely at the discretion of the Government and is not subject to the Disputes clause of the contract. The Government may terminate the contract for default if the Contractor fails to implement and follow the procedures contained in any approved mitigation plan.

(3) Nothing contained herein shall preclude the contracting officer in future Federal Government acquisitions from making his/her own determination as to whether an OCI exists and whether any such OCI has been successfully mitigated.

(e) The Contractor shall apply this clause to any subcontractors or consultants who: have access to proprietary information received or generated in the performance of this Contract; and/or, who participate in the development of data, or participate in any other activity related to this Contract which is subject to the terms of this clause at the prime contractor level.

(f) The Contractor agrees that it and its subcontractors at all levels shall use reasonable diligence in protecting proprietary data/information that is received or generated in performance of this Contract in accordance with this clause and any other clause of this Contract pertaining to the nondisclosure of information. The Contractor further agrees that neither it nor its subcontractors will willfully disclose proprietary data/information that is received or generated in the performance of this Contract without the prior permission of the Contracting Officer, and that proprietary information shall not be duplicated, used or disclosed, in whole or part, for any purpose other than to accomplish the work required by the Contract.

(g) The Contractor and its Subcontractors at all levels shall inform their employees that they are required to comply with the applicable requirements and restrictions contained in: restrictive markings applicable to data/information that they receive or generate in the performance of this Contract; FAR Subpart9.5 pertaining to actual or potential OCIs; FAR 3.104 pertaining to requirements and restrictions under the Procurement Integrity Act; and, Defense FAR Supplement (DFARS) 252.204-7000 pertaining to "Disclosure of Information."

(h) The Contractor agrees to enter into written agreements with all companies whose proprietary data it shall have access to and to protect such data from unauthorized use or disclosure as long as it remains proprietary. The Contractor shall furnish to the Contracting Officer copies of these written agreements. The Contractor agrees to protect the proprietary data and rights of other organizations disclosed to the Contractor during performance of this Contract with the same caution that a reasonably prudent Contractor would use to safeguard its own highly valuable property. The Contractor agrees to refrain from using proprietary information for any purpose other than that for which it was furnished.

(i) The Contractor shall not distribute reports, data or information of any nature received or arising from its performance under this Contract, except as provided by this Contract or as may be directed by the Contracting Officer.

(j) The Contractor agrees that if in the performance of this Contract it discovers a potential OCI, a prompt and full disclosure shall be made in writing to the Contracting Officer. This disclosure shall include a description of the actions the Contractor has taken, or proposes to take, to avoid or mitigate such conflicts.

H-6 SPECIAL CONTRACT REQUIREMENT REGARDING NON-DISCLOSURE OF INFORMATION

Data includes all data, information and software, regardless of the medium (e.g. electronic or paper) and/or format in which the data exists, and includes data which is derived from, based on, incorporates, includes or refers to such data. In the course of performing this Contract, the Contractor may be or may have been given access to: Source Selection Information [as defined in Federal Acquisition Regulation (FAR) 3.104]; data that has been assigned (or data that is generated by the Contractor that should be assigned) a contractually required or other Government distribution control (such as a Distribution Statement prescribed in DoD Directive 5230.24); and/or data that has been given a restrictive legend by the source of the data such as "business sensitive," "proprietary," "confidential," or word(s) with similar meaning that impose limits on the use and distribution of the data (see for example FAR 52.215-1(e)). All such data with limitations on use and distribution are collectively referred to herein as "protected data."

This Special Contract Requirement supplements and implements Defense FAR Supplement (DFARS) 252.204-7000, "DISCLOSURE OF INFORMATION." As a condition to receiving access to protected data, the Contractor shall: (1) prior to having access to protected data, obtain the agreement of the source of the protected data to permit access by the Contractor to such protected data; (2)use the protected data solely for the purpose of performing duties under this Contract unless otherwise permitted by the source of the protected data; (3)not disclose, release, reproduce or otherwise provide or make available the protected data, or any portion thereof, to any employee of the Contractor unless and until such employee has been informed of the restrictions on use and distribution of the protected data and agreed in writing to conform with the applicable restrictions; (4) not disclose, release, reproduce or otherwise provide or make available the protected data, or any portion thereof, to any non-Government person or entity (including, but not limited to, affiliates, subcontractors, successors and assignees of the Contractor), unless the Contracting Officer and the source of the protected data have given prior written approval (which shall be conditioned upon the person receiving the protected data having been informed of the restrictions on use and distribution of the protected data and having agreed in writing to conform with the applicable restrictions; (5) establish and execute safeguards to prevent the unauthorized use or distribution of protected data.

Any unauthorized use, disclosure or release of protected data may result in substantial criminal, civil and/or administrative penalties to the Contractor or to the individual who violates a restriction on use or distribution of protected data. Any agreement with another company regarding access to that company's protected data shall not create any limitation on the Government or its employees with regard to such data. A copy of each executed

company and individual non-disclosure agreement relating to this Contract shall be provided to the Contracting Officer's Representative (COR). Appropriate restrictive legends will be included by the Contractor on any copies and reproductions made of all or any part of the protected data and any data that is derived from, based upon, incorporates, includes or refers to the protected data. When the Contractor's need for such protected data ends, the protected data shall be returned promptly to the source of the protected data with notice to the COR. However, the obligation not to use, disclose, release, reproduce or otherwise provide or make available such protected data, or any portion thereof, shall continue, even after completion of the Contract, for so long as required by the terms of any agreement pertaining to the protected data between the Contractor and the source of the protected data, or (in the case of Government information) for so long as required by applicable law and regulation. Any actual or suspected unauthorized use, disclosure, release, or reproduction of protected data or violation of this agreement, of which the company or any employee is or may become aware, shall be reported promptly (within one business day after discovery and confirmation) to the Contracting Officer's Representative (COR).

H-7 LEVEL OF EFFORT

(a) The Contractor agrees to provide the total level of effort specified in the next sentence for performance of the work described in this contract. The level of effort for performance of this contract shall not exceed **814,629 total hours** for the entire contract, including subcontractor direct labor for those subcontractors specifically identified in the Contractor's proposal as having hours included in the proposed level of effort for the period of performance of 5 years.

(b) It is understood and agreed that the rate of hours per month may fluctuate in pursuit of the technical objective, provided such fluctuation does not result in the use of the total hours of effort prior to the expiration of the term of the contract.

(c) The Contractor is required to notify the Contracting Officer when any of the following situations occur, or are anticipated to occur: If during any three consecutive months the monthly average is exceeded by 25% or, if at any time it is forecast that during the last three months of the contract less than 50% of the monthly average will be used during any given month; or, when 85% of the total level of effort has been expended.

(d) If, during the term of the contract, the Contractor finds it necessary to accelerate the expenditure of direct labor to such an extent that the total hours of effort specified would be used prior to the expiration of the term, the Contractor shall notify the Contracting Officer in writing, setting forth the acceleration required, the probable benefits which would result, and an offer to undertake the acceleration at no increase in the estimated cost or fixed fee together with an offer setting forth a proposed level of effort, cost breakdown, and proposed fixed fee for continuation of the work until expiration of the term hereof. The offer shall provide that the work proposed will be subject to the terms and conditions of this contract and any additions or changes required by then current law, regulations, or directives, and that the offer, with a written notice of acceptance by the Contracting Officer, shall constitute a binding contract. The Contractor shall not accelerate any effort until receipt of such written approval by the Contracting Officer. Any agreement to accelerate will be formalized by contract modification.

(e) The Contracting Officer may, by written order, direct the Contractor to accelerate the expenditure of direct labor such that the total hours of effort specified in paragraph (a) above would be used prior to the expiration of the term. This order shall specify the acceleration required and the resulting revised term. The Contractor shall acknowledge this order within five days of receipt.

(f) If the total level of effort specified in paragraph (a) above is not provided by the Contractor during the term of this contract, the Contracting Officer shall either (i) reduce the fixed fee of this contract as follows:

**Fee Reduction = Fixed Fee X (Required LOE Hours - Expended LOE Hours)
Required LOE Hours**

or (ii) subject to the provisions of the clause of this contract entitled "Limitation of Cost," require the Contractor to continue to perform the work until the total number of hours of direct labor specified in paragraph (a) shall have been expended, at no increase in the fixed fee of this contract.

(g) In the event the government fails to fully fund the contract in a timely manner, the term of the contract may be extended accordingly with no change to cost or fee. If the government fails to fully fund the contract, the fee will be adjusted in direct proportion to that effort which was performed.

(h) Notwithstanding any of the provisions in the above paragraphs, the Contractor may furnish hours up to five percent in excess of the total hours specified in paragraph (a) above, provided that the additional effort is furnished within the term hereof, and provided further that no increase in the estimated cost or fixed fee is required, and no adjustment in the fixed fee shall be made provided that the Contractor has delivered at least 95% of the level of effort required in paragraph (a) above.

(i) It is understood that the mix of labor categories provided by the Contractor under the contract, as well as the distribution of effort among those categories, may vary considerably from the initial mix and distribution of effort which was estimated by the government or proposed by the Contractor.

(j) Nothing herein shall be construed to alter or waive any of the rights or obligations of either party pursuant to the Clause entitled "Limitation of Costs" or "Limitation of Funds," either of which clauses as incorporated herein applies to this contract.

H-8 NOTICE OF INCORPORATION OF TECHNICAL PROPOSAL

The Contractor's technical proposal dated TBD, including final proposal revisions submitted TBD (if required), submitted in response to N00173-25-R-2440, is hereby incorporated into the contract by reference. The Contractor shall perform the work substantially as set forth in this award. Any revisions to the technical proposal that would significantly alter the technical approach must be approved in writing by the Contracting Officer. In the event of a conflict between the contract and the Contractor's technical proposal, the Contract shall take precedence.

H-9 CURRENT AND PENDING PROJECT AND PROPOSAL SUBMISSIONS

Performers are required to provide information on all current and pending support for ongoing project and proposals, including subsequent funding in the case of continuing contracts, grants, and other assistance agreements. Applicants shall provide the following information of any related or complementary proposal submissions from whatever sources (e.g. NRL, Federal, State, local or foreign government agencies, public or private foundations, industrial or other commercial organizations). Concurrent submission of a proposal to other organizations will not prejudice its review by NRL. Information shall include:

- State how projects are related to the proposed effort and indicate degree of overlap
- The total award amount for the entire award period covered (including indirect costs) must be shown as well as the number of person-months or labor hours per year to be devoted to the project, regardless of source of support; and
- The proposed project and all other projects or activities requiring a portion of time of the Principal Investigator and other senior personnel must be included, even if they receive no salary support from the project(s);
- Period of performance (differentiate basic effort);
- Administrative/business contact (name, address, phone/fax, electronic mail address);
- Technical contact (name, address, phone/fax, electronic mail address)
- Identity of prime applicant and complete list of sub-awards, if applicable;
- Percentage effort devoted to each project;
- Source and amount of funding (annual direct costs; provide contract and/or grant numbers for current contracts/grants);
- Title of Proposal and Summary;

H-10 Government Property

Contractor Acquired Property. In the event the contractor is required to purchase property in the performance of this award, compliance with the procedures of FAR Part 45.402, Government Property and CLIN 0004 is required.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.215-23	Limitations on Pass-Through Charges. (Alternate I)	Jun 2020	Alternate I	Oct 2009
52.216-8	Fixed Fee.	Jun 2011		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.219-8	Utilization of Small Business Concerns.	Jan 2025		
52.219-33	Nonmanufacturer Rule.	Sep 2021		
52.222-3	Convict Labor.	Jun 2003		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	May 2024	Deviation 2025-O0004	Mar 2025
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-17	Interest.	May 2014		
52.232-22	Limitation of Funds.	Apr 1984		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-3	Protest after Award. (Alternate I)	Aug 1996	Alternate I	Jun 1985
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-3	Penalties for Unallowable Costs.	Dec 2022		
52.242-13	Bankruptcy.	Jul 1995		

52.243-2	Changes-Cost-Reimbursement. (Alternate V)	Aug 1987	Alternate V	Apr 1984
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Jan 2025	Deviation 2025-O0003	Mar 2025
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-14	Excusable Delays.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7014	Rights in Other Than Commercial Computer Software and Other Than Commercial	Jan 2025		
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025		
252.227-7020	Rights in Special Works.	Jun 1995		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.227-7039	Patents--Reporting of Subject Inventions.	Apr 1990		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.235-7011	Final Scientific or Technical Report.	Dec 2019		
252.242-7004	Material Management and Accounting System.	Jan 2025		
252.242-7006	Accounting System Administration.	Jan 2025		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.244-7001	Contractor Purchasing System Administration.	Jan 2025		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.204-1 Approval of Contract.**(Dec 1989)**

APPROVAL OF CONTRACT (DEC 1989)

This contract is subject to the written approval of NRL Chief of Contracting[identify title of designated agency official here] and shall not be binding until so approved.

(End of clause)

52.204-2 Security Requirements.**(Mar 2021)**

SECURITY REQUIREMENTS (MAR 2021)

(a) This clause applies to the extent that this contract involves access to information classified "Confidential," "Secret," or "Top Secret."

(b) The Contractor shall comply with-

(1) The Security Agreement DD Form 441, including the *National Industrial Security Program Operating Manual* (32 CFR part 117); and

(2) Any revisions to that manual, notice of which has been furnished to the Contractor.

(c) If, subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, the contract shall be subject to an equitable adjustment as if the changes were directed under the Changes clause of this contract.

(d) The Contractor agrees to insert terms that conform substantially to the language of this clause, including this paragraph (d) but excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access to classified information.

(End of clause)

52.216-7 Allowable Cost and Payment.**(Aug 2018)**

ALLOWABLE COST AND PAYMENT (AUG 2018)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th[Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information.* Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>.

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

- (A) Determine the amounts due to the Contractor under the contract; and
- (B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

- (1) Shall be the anticipated final rates; and
- (2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

- (1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or
- (2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years(months) (years).

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Oct 2022)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

☐ Offeror elects to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

52.219-14 Limitations on Subcontracting. (Oct 2022)

LIMITATIONS ON SUBCONTRACTING (OCT 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity,* as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are-

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are-

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i) (F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation.

(Jan 2025)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [____The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Alternate I)

(Jan 2025) Alternate I (Mar 2020)

Alternate I (MAR 2020). As prescribed in 19.309 (c)(2), substitute the following paragraph (h)(1) for paragraph (h)(1) of the basic clause:

(h)(1) The Contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

NAICS Code	Small business concern (yes/no)
_____	_____

==	==
==	==

[Contracting Officer to insert NAICS codes.]

52.222-2 Payment for Overtime Premiums.

(Jul 1990)

PAYMENT FOR OVERTIME PREMIUMS (JULY 1990)

(a) The use of overtime is authorized under this contract if the overtime premium does not exceed *zero or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above shall include all estimated overtime for contract completion and shall-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

* Insert either "zero" or the dollar amount agreed to during negotiations. The inserted figure does not apply to the exceptions in paragraph (a)(1) through (a)(4) of the clause.

(End of clause)

52.222-40 Notification of Employee Rights Under the National Labor Relations Act.

(Dec 2010)

NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010)

(a) During the term of this contract, the Contractor shall post an employee notice, of such size and in such form, and containing such content as prescribed by the Secretary of Labor, in conspicuous places in and about its plants and offices where employees covered by the National Labor Relations Act engage in activities relating to the performance of the contract, including all places where notices to employees are customarily posted both physically and electronically, in the languages employees speak, in accordance with 29 CFR471.2 (d) and (f).

(1) Physical posting of the employee notice shall be in conspicuous places in and about the Contractor's plants and offices so that the notice is prominent and readily seen by employees who are covered by the National Labor Relations Act and engage in activities related to the performance of the contract.

(2) If the Contractor customarily posts notices to employees electronically, then the Contractor shall also post the required notice electronically by displaying prominently, on any website that is maintained by the Contractor and is customarily used for notices to employees about terms and conditions of employment, a link to the Department of Labor's website that contains the full text of the poster. The link to the Department's website, as referenced in (b)(3) of this section, must read, "Important Notice about Employee Rights to Organize and Bargain Collectively with Their Employers."

(b) This required employee notice, printed by the Department of Labor, may be-

(1) Obtained from the Division of Interpretations and Standards, Office of Labor-Management Standards, U.S. Department of Labor, 200 Constitution Avenue, NW., Room N-5609, Washington, DC 20210, (202) 693-0123, or from any field office of the Office of Labor-Management Standards or Office of Federal Contract Compliance Programs;

(2) Provided by the Federal contracting agency if requested;

(3) Downloaded from the Office of Labor-Management Standards Web site at <http://www.dol.gov/olms/regs/compliance/EO13496.htm>; or

(4) Reproduced and used as exact duplicate copies of the Department of Labor's official poster.

(c) The required text of the employee notice referred to in this clause is located at Appendix A, Subpart A, 29 CFR Part 471.

(d) The Contractor shall comply with all provisions of the employee notice and related rules, regulations, and orders of the Secretary of Labor.

(e) In the event that the Contractor does not comply with the requirements set forth in paragraphs (a) through (d) of this clause, this contract may be terminated or suspended in whole or in part, and the Contractor may be suspended or debarred in accordance with 29 CFR 471.14 and subpart 9.4. Such other sanctions or remedies may be imposed as are provided by 29 CFR part 471, which implements Executive Order 13496 or as otherwise provided by law.

(f) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (f), in every subcontract that exceeds \$10,000 and will be performed wholly or partially in the United States, unless exempted by the rules, regulations, or orders of the Secretary of Labor issued pursuant to section 3 of Executive Order 13496 of January 30, 2009, so that such provisions will be binding upon each subcontractor.

(2) The Contractor shall not procure supplies or services in a way designed to avoid the applicability of Executive Order 13496 or this clause.

(3) The Contractor shall take such action with respect to any such subcontract as may be directed by the Secretary of Labor as a means of enforcing such provisions, including the imposition of sanctions for noncompliance.

(4) However, if the Contractor becomes involved in litigation with a subcontractor, or is threatened with such involvement, as a result of such direction, the Contractor may request the United States, through the Secretary of Labor, to enter into such litigation to protect the interests of the United States.

(End of clause)

52.227-11 Patent Rights-Ownership by the Contractor.

(May 2014)

PATENT RIGHTS-OWNERSHIP BY THE CONTRACTOR (MAY 2014)

(a) As used in this clause-

Invention means any invention or discovery that is or may be patentable or otherwise protectable under title 35 of the U.S. Code, or any variety of plant that is or may be protectable under the Plant Variety Protection Act (7 U.S.C. 2321, *et seq.*)

Made means-

(1) When used in relation to any invention other than a plant variety, the conception or first actual reduction to practice of the invention; or

(2) When used in relation to a plant variety, that the Contractor has at least tentatively determined that the variety has been reproduced with recognized characteristics.

Nonprofit organization means a university or other institution of higher education or an organization of the type described in section 501(c)(3) of the Internal Revenue Code of 1954 (26 U.S.C. 501(c)) and exempt from taxation under section 501(a) of the Internal Revenue Code (26 U.S.C. 501(a)), or any nonprofit scientific or educational organization qualified under a State nonprofit organization statute.

"Practical application" means to manufacture, in the case of a composition of product; to practice, in the case of a process or method; or to operate, in the case of a machine or system; and, in each case, under such conditions as to establish that the invention is being utilized and that its benefits are, to the extent permitted by law or Government regulations, available to the public on reasonable terms.

Subject invention means any invention of the Contractor made in the performance of work under this contract.

(b) *Contractor's rights.*

(1) *Ownership.* The Contractor may retain ownership of each subject invention throughout the world in accordance with the provisions of this clause.

(2) *License.*

(i) The Contractor shall retain a nonexclusive royalty-free license throughout the world in each subject invention to which the Government obtains title, unless the Contractor fails to disclose the invention within the times specified in paragraph (c) of this clause. The Contractor's license extends to any domestic subsidiaries and affiliates within the corporate structure of which the Contractor is a part, and includes the right to grant sublicenses to

the extent the Contractor was legally obligated to do so at contract award. The license is transferable only with the written approval of the agency, except when transferred to the successor of that part of the Contractor's business to which the invention pertains.

(ii) The Contractor's license may be revoked or modified by the agency to the extent necessary to achieve expeditious practical application of the subject invention in a particular country in accordance with the procedures in FAR 27.302(i)(2) and 27.304-1(f).

(c) *Contractor's obligations.*

(1) The Contractor shall disclose in writing each subject invention to the Contracting Officer within 2 months after the inventor discloses it in writing to Contractor personnel responsible for patent matters. The disclosure shall identify the inventor(s) and this contract under which the subject invention was made. It shall be sufficiently complete in technical detail to convey a clear understanding of the subject invention. The disclosure shall also identify any publication, on sale (*i.e.*, sale or offer for sale), or public use of the subject invention, or whether a manuscript describing the subject invention has been submitted for publication and, if so, whether it has been accepted for publication. In addition, after disclosure to the agency, the Contractor shall promptly notify the Contracting Officer of the acceptance of any manuscript describing the subject invention for publication and any on sale or public use.

(2) The Contractor shall elect in writing whether or not to retain ownership of any subject invention by notifying the Contracting Officer within 2 years of disclosure to the agency. However, in any case where publication, on sale, or public use has initiated the 1-year statutory period during which valid patent protection can be obtained in the United States, the period for election of title may be shortened by the agency to a date that is no more than 60 days prior to the end of the statutory period.

(3) The Contractor shall file either a provisional or a nonprovisional patent application or a Plant Variety Protection Application on an elected subject invention within 1 year after election. However, in any case where a publication, on sale, or public use has initiated the 1-year statutory period during which valid patent protection can be obtained in the United States, the Contractor shall file the application prior to the end of that statutory period. If the Contractor files a provisional application, it shall file a nonprovisional application within 10 months of the filing of the provisional application. The Contractor shall file patent applications in additional countries or international patent offices within either 10 months of the first filed patent application (whether provisional or nonprovisional) or 6 months from the date permission is granted by the Commissioner of Patents to file foreign patent applications where such filing has been prohibited by a Secrecy Order.

(4) The Contractor may request extensions of time for disclosure, election, or filing under paragraphs (c)(1), (c)(2), and (c)(3) of this clause.

(d) *Government's rights-*

(1) *Ownership.* The Contractor shall assign to the agency, on written request, title to any subject invention-

(i) If the Contractor fails to disclose or elect ownership to the subject invention within the times specified in paragraph (c) of this clause, or elects not to retain ownership; provided, that the agency may request title only within 60 days after learning of the Contractor's failure to disclose or elect within the specified times.

(ii) In those countries in which the Contractor fails to file patent applications within the times specified in paragraph (c) of this clause; provided, however, that if the Contractor has filed a patent application in a country after the times specified in paragraph (c) of this clause, but prior to its receipt of the written request of the agency, the Contractor shall continue to retain ownership in that country.

(iii) In any country in which the Contractor decides not to continue the prosecution of any application for, to pay the maintenance fees on, or defend in reexamination or opposition proceeding on, a patent on a subject invention.

(2) *License.* If the Contractor retains ownership of any subject invention, the Government shall have a nonexclusive, nontransferable, irrevocable, paid-up license to practice, or have practiced for or on its behalf, the subject invention throughout the world.

(e) *Contractor action to protect the Government's interest.*

(1) The Contractor shall execute or have executed and promptly deliver to the agency all instruments necessary to-

(i) Establish or confirm the rights the Government has throughout the world in those subject inventions in which the Contractor elects to retain ownership; and

(ii) Assign title to the agency when requested under paragraph (d) of this clause and to enable the Government to obtain patent protection and plant variety protection for that subject invention in any country.

(2) The Contractor shall require, by written agreement, its employees, other than clerical and nontechnical employees, to disclose promptly in writing to personnel identified as responsible for the administration of patent matters and in the Contractor's format, each subject invention in order that the Contractor can comply with the disclosure provisions of paragraph (c) of this clause, and to execute all papers necessary to file patent applications on subject inventions and to establish the Government's rights in the subject inventions. The disclosure format should require, as a minimum, the information required by paragraph (c)(1) of this clause. The Contractor shall instruct such employees, through employee agreements or other suitable educational programs, as to the importance of reporting inventions in sufficient time to permit the filing of patent applications prior to U. S. or foreign statutory bars.

(3) The Contractor shall notify the Contracting Officer of any decisions not to file a nonprovisional patent application, continue the prosecution of a patent application, pay maintenance fees, or defend in a reexamination or opposition proceeding on a patent, in any country, not less than 30 days before the expiration of the response or filing period required by the relevant patent office.

(4) The Contractor shall include, within the specification of any United States nonprovisional patent or plant variety protection application and any patent or plant variety protection certificate issuing thereon covering a subject invention, the following statement, "This invention was made with Government support under (identify the contract) awarded by (identify the agency). The Government has certain rights in the invention."

(f) *Reporting on utilization of subject inventions.* The Contractor shall submit, on request, periodic reports no more frequently than annually on the utilization of a subject invention or on efforts at obtaining utilization of the subject invention that are being made by the Contractor or its licensees or assignees. The reports shall include information regarding the status of development, date of first commercial sale or use, gross royalties received by the Contractor, and other data and information as the agency may reasonably specify. The Contractor also shall provide additional reports as may be requested by the agency in connection with any march-in proceeding undertaken by the agency in accordance with paragraph (h) of this clause. The Contractor also shall mark any utilization report as confidential/proprietary to help prevent inadvertent release outside the Government. As required by 35 U.S.C. 202(c)(5), the agency will not disclose that information to persons outside the Government without the Contractor's permission.

(g) *Preference for United States industry.* Notwithstanding any other provision of this clause, neither the Contractor nor any assignee shall grant to any person the exclusive right to use or sell any subject invention in the United States unless the person agrees that any products embodying the subject invention or produced through the use of the subject invention will be manufactured substantially in the United States. However, in individual cases, the requirement for an agreement may be waived by the agency upon a showing by the Contractor or its assignee that reasonable but unsuccessful efforts have been made to grant licenses on similar terms to potential licensees that would be likely to manufacture substantially in the United States, or that under the circumstances domestic manufacture is not commercially feasible.

(h) *March-in rights.* The Contractor acknowledges that, with respect to any subject invention in which it has retained ownership, the agency has the right to require licensing pursuant to 35 U.S.C. 203 and 210(c), and in accordance with the procedures in 37 CFR 401.6 and any supplemental regulations of the agency in effect on the date of contract award.

(i) Special provisions for contracts with nonprofit organizations. If the Contractor is a nonprofit organization, it shall-

(1) Not assign rights to a subject invention in the United States without the written approval of the agency, except where an assignment is made to an organization that has as one of its primary functions the management of inventions, *provided*, that the assignee shall be subject to the same provisions as the Contractor;

(2) Share royalties collected on a subject invention with the inventor, including Federal employee co-inventors (but through their agency if the agency deems it appropriate) when the subject invention is assigned in accordance with 35 U.S.C. 202(e) and 37 CFR 401.10;

(3) Use the balance of any royalties or income earned by the Contractor with respect to subject inventions, after payment of expenses (including payments to inventors) incidental to the administration of subject inventions for the support of scientific research or education; and

(4) Make efforts that are reasonable under the circumstances to attract licensees of subject inventions that are small business concerns, and give a preference to a small business concern when licensing a subject invention if the Contractor determines that the small business concern has a plan or proposal for marketing the invention which, if executed, is equally as likely to bring the invention to practical application as any plans or proposals from applicants that are not small business concerns; *provided*, that the Contractor is also satisfied that the small business concern has the capability and resources to carry out its plan or proposal. The decision whether to give a preference in any specific case will be at the discretion of the Contractor.

(5) Allow the Secretary of Commerce to review the Contractor's licensing program and decisions regarding small business applicants, and negotiate changes to its licensing policies, procedures, or practices with the Secretary of Commerce when the Secretary's review discloses that the Contractor could take reasonable steps to more effectively implement the requirements of paragraph (i)(4) of this clause.

(j) *Communications.* _____[Complete according to agency instructions.]

(k) *Subcontracts.*

(1) The Contractor shall include the substance of this clause, including this paragraph (k), in all subcontracts for experimental, developmental, or research work to be performed by a small business concern or nonprofit organization.

(2) The Contractor shall include in all other subcontracts for experimental, developmental, or research work the substance of the patent rights clause required by FAR subpart 27.3.

(3) At all tiers, the patent rights clause must be modified to identify the parties as follows: references to the Government are not changed, and the subcontractor has all rights and obligations of the Contractor in the clause. The Contractor shall not, as part of the consideration for awarding the subcontract, obtain rights in the subcontractor's subject inventions.

(4) In subcontracts, at any tier, the agency, the subcontractor, and the Contractor agree that the mutual obligations of the parties created by this clause constitute a contract between the subcontractor and the agency with respect to the matters covered by the clause; provided, however, that nothing in this paragraph is intended to confer any jurisdiction under the Contract Disputes statute in connection with proceedings under paragraph (h) of this clause.

(End of clause)

Notwithstanding any other payment clause in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer (EFT). Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(4) of this clause concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Due date. (i) Except as indicated in paragraphs (a)(2) and (c) of this clause, the due date for making invoice payments by the designated payment office is the later of the following two events:

(A) The 30 thday after the designated billing office receives a proper invoice from the Contractor (except as provided in paragraph (a)(1)(ii) of this clause).

(B) The 30 thday after Government acceptance of supplies delivered or services performed. For a final invoice, when the payment amount is subject to contract settlement actions, acceptance is deemed to occur on the effective date of the contract settlement.

(ii) If the designated billing office fails to annotate the invoice with the actual date of receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Certain food products and other payments.

(i) Due dates on Contractor invoices for meat, meat food products, or fish; perishable agricultural commodities; and dairy products, edible fats or oils, and food products prepared from edible fats or oils are-

(A) For meat or meat food products, as defined in section 2(a)(3) of the Packers and Stockyard Act of 1921 (7 U.S.C.182(3)), and as further defined in Pub.L.98-181, including any edible fresh or frozen poultry meat, any perishable poultry meat food product, fresh eggs, and any perishable egg product, as close as possible to, but not later than, the 7 thday after product delivery.

(B) For fresh or frozen fish, as defined in section 204(3) of the Fish and Seafood Promotion Act of 1986 (16 U.S.C.4003(3)), as close as possible to, but not later than, the 7 thday after product delivery.

(C) For perishable agricultural commodities, as defined in section 1(4) of the Perishable Agricultural Commodities Act of 1930 (7 U.S.C.499a(4)), as close as possible to, but not later than, the 10 thday after product delivery, unless another date is specified in the contract.

(D) For dairy products, as defined in section 111(e) of the Dairy Production Stabilization Act of 1983 (7 U.S.C.4502(e)), edible fats or oils, and food products prepared from edible fats or oils, as close as possible to, but not later than, the 10 thday after the date on which a proper invoice has been received. Liquid milk, cheese, certain processed cheese products, butter, yogurt, ice cream, mayonnaise, salad dressings, and other similar products, fall within this classification. Nothing in the Act limits this classification to refrigerated products. When questions arise regarding the proper classification of a specific product, prevailing industry practices will be followed in specifying a contract payment due date. The burden of proof that a classification of a specific product is, in fact, prevailing industry practice is upon the Contractor making the representation.

(ii) If the contract does not require submission of an invoice for payment (*e.g.*, periodic lease payments), the due date will be as specified in the contract.

(3) *Contractor's invoice.* The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(3)(i) through (a)(3)(x) of this clause. If the invoice does not comply with these requirements, the designated billing office will return it within 7 days after receipt (3 days for meat, meat food products, or fish; 5 days for perishable agricultural commodities, dairy products, edible fats or oils, and food products prepared from edible fats or oils), with the reasons why it is not a proper invoice. The Government will take into account untimely notification when computing any interest penalty owed the Contractor.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of the mailing or transmission.)

(iii) Contract number or other authorization for supplies delivered or services performed (including order number and line item number).

(iv) Description, quantity, unit of measure, unit price, and extended price of supplies delivered or services performed.

(v) Shipping and payment terms (*e.g.*, shipment number and date of shipment, discount for prompt payment terms). Bill of lading number and weight of shipment will be shown for shipments on Government bills of lading.

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(ix) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(x) Any other information or documentation required by the contract (e.g., evidence of shipment).

(4) *Interest penalty.* The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(4)(i) through (a)(4)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment, and there was no disagreement over quantity, quality, or Contractor compliance with any contract term or condition.

(iii) In the case of a final invoice for any balance of funds due the Contractor for supplies delivered or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(5) *Computing penalty amount.* The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor, Government acceptance is deemed to occur constructively on the 7 thday (unless otherwise specified in this contract) after the Contractor delivers the supplies or performs the services in accordance with the terms and conditions of the contract, unless there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. If actual acceptance occurs within the constructive acceptance period, the Government will base the determination of an interest penalty on the actual date of acceptance. The constructive acceptance requirement does not, however, compel Government officials to accept supplies or services, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(6) *Discounts for prompt payment.* The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(7) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(7)(ii) of this clause, postmarked not later than 40 days after the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest is due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt, provided the demand is received on or before the 40th day after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40th day after payment was made.

(iii) The additional penalty does not apply to payments regulated by other Government regulations (*e.g.*, payments under utility contracts subject to tariffs and regulation).

(b) *Contract financing payment.* If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) *Fast payment procedure due dates.* If this contract contains the clause at 52.213-1, Fast Payment Procedure, payments will be made within 15 days after the date of receipt of the invoice.

(d) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.242-4 Certification of Final Indirect Costs.

(Jan 1997)

CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: _____

Signature: _____

Name of Certifying Official: _____

Title: _____

Date of Execution: _____

(End of clause)

SUBCONTRACTS (JUN 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

any subcontractors not evaluated at time of proposal submission

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

- (1) Of the acceptability of any subcontract terms or conditions;
- (2) Of the allowability of any cost under this contract; or
- (3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

=====

(End of clause)

52.247-1 Commercial Bill of Lading Notations.

(Feb 2006)

COMMERCIAL BILL OF LADING NOTATIONS (FEB 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the N/A[name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the _____[name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. _____. This may be confirmed by contacting _____ _____[Name and address of the contract administration office listed in the contract].

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov _____ _____[Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any ____ [insert regulation name] (48 CFR ____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.235-7010 Acknowledgment of Support and Disclaimer.

(May 1995)

ACKNOWLEDGMENT OF SUPPORT AND DISCLAIMER (MAY 1995)

(a) The Contractor shall include an acknowledgment of the Government's support in the publication of any material based on or developed under this contract, stated in the following terms: This material is based upon work supported by the Naval Research Laboratory under Contract No. ____ (Contracting agency(ies) contract number(s)).

(b) All material, except scientific articles or papers published in scientific journals, must, in addition to any notices or disclaimers by the Contractor, also contain the following disclaimer: Any opinions, findings and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the Naval Research Laboratory.

(End of clause)

Section J - List of Attachments

Exhibits:

Id	Exhibit Name	Exhibit Description	Reference Identifier	Date	Line Item
A	Exhibit A CDRLs	Contract Data Requirements List (CDRL)	Exhibit A-CDRLs	28 Apr 2025	

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Attachment 1 - SOW	Statement of Work	Attachment 1 SOW	01 May 2025
02	Attachment 2 - Personnel Qualifications- Amendment 0002		Attachment 2 Personnel Qualifications	18 Jun 2025
03	Attachment 3 - Past Performance Questionnaire Amendment 0002		Attachment 3 Past Performance Questionnaire	18 Jun 2025
04	Attachment 4 -- Cost Proposal Spreadsheet Template		Attachment 4 - Cost Proposal Spreadsheet Template	15 May 2025
05	Attachment 5 - SBPCD		Attachment 5 - Small Business Participation Commitment Document (SBPCD) Template	28 Apr 2025
06	Attachment 6 - Draft DD254	Contract Security Classification Specification (DD 254)	Attachment 6 - DD254 CONTRACT SECURITY CLASSIFICATION SPECIFICATION (draft)	28 Apr 2025
07	Attachment 7 -- Requirements for Onsite KTRs		Attachment 7 - Requirements for On-Site Contractors	15 May 2025
08	Q&A #1- 6_13_25	General correspondence, not elsewhere listed		13 Jun 2025
				18 Jun

09	Q&A #2- 6_18_25	General correspondence, not elsewhere listed		2025
----	-----------------	--	--	------

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation.	Nov 2015		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		
52.230-7	Proposal Disclosure-Cost Accounting Practice Changes.	Apr 2005		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government.	Jun 1995		

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (Jan 2025)

Annual Representations and Certifications (Jan 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541715[insert NAICS code].

(2) The small business size standard is 1000[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.**(Oct 2024) Alternate A (Oct 2024)****ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)**

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions.

(Jan 2025)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) *Definitions.* As used in this provision-

"Computer software" is defined in-

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in-

(1) The 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or			
-------------------	--	--	--

Computer Software			Name of Person
to be Furnished	Basis for	Asserted Rights	Asserting
With Restrictions ¹	Assertion ²	Category ³	Restrictions ⁴
____(LIST) ⁵	____(LIST)	____(LIST)	____(LIST)

¹ For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date	_____
Printed Name and Title	_____

Signature	_____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L-1 INSTRUCTIONS FOR SUBMISSION OF PROPOSALS/OFFERS

THIS ACQUISITION IS TO BE PROCURED VIA A SMALL BUSINESS SET-ASIDE COMPETITION.

The Offeror shall submit all information required by this solicitation. Failure to comply with the terms and conditions of the solicitation may result in the Offeror being deemed non-responsive and therefore not eligible for award.

The Offeror's proposal shall be based on the requirements contained in this solicitation (including those documents, exhibits, and other attachments to the solicitation identified in Section J). Offeror's are required to submit a proposal encompassing all items listed in Section B of this solicitation.

Each Offeror shall submit only one proposal which represents its best approach to meeting the requirements of the solicitation. No alternative proposals will be accepted by the Government. In order to allow for procurement lead time and a fair and equal evaluation of all proposals submitted under this competitive solicitation, all proposals shall be based on a contract start date of October 29, 2025. This date is only an estimate of the anticipated contract start date and will be used for the purpose of evaluation only. A definitive start date will be incorporated at time of contract award.

(1) Background

The Government contemplates award to one (1) Offeror with a single prime contract as a result of this solicitation.

(2) Solicitation Security Classification

This solicitation is unclassified.

(3) Proposal Delivery Information

Offeror's are instructed they may submit questions in response to this solicitation to the Contract Specialist and Contracting Officer up until COB 15 days after proposal posting.

Contract Specialist: Ms. Candice Tawiah – candice.a.tawiah.civ@us.navy.mil

Contracting Officer: CDR Callan Walsh – callan.t.walsh.mil@us.navy.mil

Proposals in response to this solicitation will ONLY be accepted via electronic transmission in DoD SAFE. *Offerors shall contact the Contract Specialist 2-3 business days prior to the day it intends to submit a proposal in order to obtain a DoD SAFE drop-off request.

All reference to proposal "pages" in this section refer to the electronic version only. No paper copy proposals shall be submitted.

Offerors are advised that the Government may be unable to receive other types of electronic files (e.g., .zip files). Proposal submission shall be in Adobe, Microsoft Word and Excel formats. Offerors are responsible for ensuring the Government's receipt of a complete proposal by the closing date and time provided in block 9 of the SF33.

Proposals in response to this solicitation not received by the date and time specified on the SF33 will be considered late, as defined by FAR 52.215-1. Timeliness of receipt of proposals will be determined based on the receipt time in DoD SAFE.

L-2 PROPOSAL VOLUME REQUIREMENTS

This section delineates general information and requirements to be followed in the preparation of the Offeror's proposal. These instructions are provided for the Offerors proposal organization and to ensure consistency across proposals for Government evaluation purposes. An Offeror's failure to comply with the content requirements as detailed herein will be considered during evaluation and will result in a lower evaluation rating or ineligibility for award. Non-conformance with the instructions provided in this RFP may result in an unfavorable proposal evaluation. Alternate proposals that depart from stated requirements will not be considered and shall not be submitted.

An Offeror's proposal shall be sufficiently detailed to enable Government Evaluation Board Members to make a thorough evaluation and sound determination as to the prospective Offeror's ability to perform in accordance with the stated requirements based on the Offeror's proposal submission alone.

The Offeror's proposal shall be specific, detailed and complete so as to clearly demonstrate to the Government that the Offeror has a thorough understanding of and capability to perform all aspects of the solicitation requirements to include but not limited to its technical capability, proposed personnel, management approach, and efficiencies, as required by the SOW and all other sections and attachments contained in the solicitation.

Offeror's should assume that the Government has no prior knowledge of their abilities, experience, or knowledge and will base its evaluation ONLY on the information presented in the Offeror's proposals. The Contractor should not presume that data previously submitted, or presumed to be known (e.g., data or services previously submitted or performed for the Government), will be considered as part of the proposal. The Government does not assume the duty to search for data to cure deficiencies it finds in proposals. Failure to conform to all requirements of this solicitation may form the basis for rejection of the Offerors proposal.

General statements such as but not limited to:

"the Offeror understands the method for performing the engineering efforts (or any

portion thereof) and can or will comply with the requirements of the solicitation"; the Offeror utilizes standard IT industry support methodologies"; "the Offeror's significant, well documented experience makes it uniquely suited to meet the requirements of SOW Section 3.2" and "ensures the highest response rates" will be considered inadequate. The Offeror's proposal must address all topics described in the following section(s).

The Proposal **MUST** include the following information in Volume V Section 1.2 to be eligible for award. Standard Form 33 (SF 33), "Solicitation, Offer and Award: the **Offeror shall complete, sign, and submit the SF 33 with blocks 12 through 18 populated, as well as all sections with applicable fill-ins.** Submission of a signed SF33 offer to the Government constitutes the Offerors agreement and acceptance of the solicited terms and conditions and the Offeror accepts the offer as submitted may result in a contract. The representative who signs this form must be authorized to contractually bind the company providing the offer. The Offeror must also include and acknowledge all amendments. The information contained in SF 33 is exempt from the font and spacing requirements identified under Section L-2 (2).

Sections A through K, Solicitation, Offer and Award: Offeror's must fill in all areas of the solicitation listed as Offeror fill-ins. The information in Sections A through K is exempt from the font and spacing requirements.

Section B, Supplies or Services and Prices: Offeror's shall complete all pricing (including Section B), including proposed costs and fees, in WHOLE DOLLARS only. The information in Section B is exempt from the font and spacing requirements.

Section K, "Representation, Certifications and Other Statements of Offeror's: The Offeror shall complete all requirements in Section K of this Solicitation. The information in Section K is exempt from the font and spacing requirements.

The Offeror shall include a signed statement, on the Offeror's letterhead, stating that the associated proposal:

- a) Is for all requirements as stated in the solicitation (including all attachments, appendices, exhibits, and amendments);
- b) Is made without qualification, condition or exception to any terms and conditions appearing in the solicitation; and
- c) Is valid for a period of one-hundred and eighty (180) days from the date established for the receipt of proposals.

(1) PROPOSAL CONTENT:

The Offeror shall prepare the proposal as set forth in the Proposal Organization Table below. The titles and contents of the volumes shall be as defined in this table, all of which shall be within the required page limits and with the number of copies specified in the table. The contents of each proposal volume are described in the paragraphs noted in the table.

Proposal Organization				
Volume # and Title	File Name	Section L Reference	Elec. Format	Page Limit
COVER LETTER	Cover Letter_Company Name	L-2	1*	2
I - TECHNICAL PROPOSAL	Volume I_Company Name	L-3	1*	50
II - PAST PERFORMANCE INFORMATION	Volume II_Company Name	L-4	1*	20
III - SMALL BUSINESS PARTICIPATION	Volume III_Company Name	L-5	1*	No limit
IV - COST PROPOSAL	Volume IV_Company Name	L-7	1*	No limit
V - COST SPREADSHEET (EXCEL)	Volume V_Company Name	L-7	2**	No limit
VI - CONTRACT INFORMATION	Volume VI_Company Name	L-7	1*	No limit

***1 = Word and PDF**

****2 = Excel (unlocked, all formulas traceable)**

The proposal volumes discussed below shall be accompanied by a cover letter (letter of transmittal) prepared on the company's letterhead stationery. The cover letter (letter of transmittal) shall identify the contractor's name, address, UIED #, cage code, business size and all enclosures being transmitted. It shall be used only to transmit the proposal and shall include no other information. The cover letter shall be in accordance with FAR 52.215-1, paragraph (c)(2).

The proposal shall contain all the pertinent information in sufficient detail to permit evaluation. The proposal should be detailed and complete in order to clearly demonstrate that the Offeror has a thorough comprehension of all technical and other requirements. If an Offeror fails to comply with content requirements, its proposal may be downgraded for failure to follow instructions.

(2) PAGE SIZE AND FORMAT

A page is defined as each face of a sheet of paper containing information. Page size shall be 8.5 x 11 inches. Pages shall be single spaced. Except for the reproduced sections of the solicitation document the text size shall be no less than 12-point font. Use at least 1-inch margins on the top and bottom and each side. Pages shall be

numbered sequentially by volume.

In the upper right header of all pages, the Offeror shall include the following information: RFP #, volume #, volume title, and page #.

Legible tables, charts graphs and figures shall be used wherever practical to depict organizations, systems and layout, implementation schedules, plans, etc. These displays shall be uncomplicated, legible, and shall not exceed 11 X 17 inches in size. Larger pages that would normally be provided as a paper foldout pages shall count as two pages for each side; double sided shall count as four pages. Foldout pages may only be used for large tables, charts, graphs, diagrams and schematics not for pages of text. For tables, charts, graphs and figures the text shall be no smaller than 8 points. These limitations do not apply for the Volume IV - Cost Spreadsheet (Excel).

Within all Microsoft Excel spreadsheets, the Offeror shall use formulas and functions to the maximum extent possible and avoid using output type "value only" cells. Excel sheets shall be developed in an organized manner, that allows for the Government evaluator to easily trace all functions /formulas and to recreate the spreadsheet. Spreadsheets shall not be protected.

No hyperlinks to external documents shall be allowed within the proposal. Proposals shall not be supplemented by any additional package or reference documents.

Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read, and will not be considered and will not be included in the evaluation of the proposal.

(3) COST OR PRICING RELATED DATA

All cost or pricing data shall be addressed ONLY in the Cost/Price Proposal (Volume IV). Cost trade-off information, work hour estimates, and material kinds and quantities may be used in other volumes only as appropriate for presenting rationale for alternatives or design and trade-off decisions. No cost or pricing information shall be included in the Offeror's forwarding letter or in any part of its submitted Volume I.

(4) CLASSIFIED INFORMATION

Proposals shall not contain classified information.

(5) FILE NAMING CONVENTION

Offeror's shall name files using the naming conventions mentioned in the Proposal Organization table above. The files must be named in an unambiguous manner, using plain text language, which facilitates accessing the files for evaluation. Offeror's shall insert the file name in the header of each document. A date shall be placed on each page of the proposal corresponding to the date of the initial proposal. If a Final Proposal Revision (FPR) is required as a result of discussions, all revised pages shall contain revision numbers and corresponding date.

(6) FINAL PROPOSAL REVISIONS (IF NECESSARY)

The changes in text from original proposal submission shall be identified by tracked changes in the electronic files provided. A note/comment identifying the associated question from discussions shall be included. Offeror's are not required to resubmit the

full responses provided during discussions. The Offeror's responses to the questions asked during discussions shall be incorporated by updated text in the FPR submission as applicable, and incorporated by reference using a note/comment to reference the applicable response(s) provided during discussions. References to applicable discussion questions shall be identified in all applicable sections of your FPR. It is acceptable to replace excel files in their entirety and explain any changes in the word document text. In the event of any inconsistencies between the FPR and discussion question responses, the FPR shall take precedence.

(7) PAGE COUNT

The page count shall include all material with printed matter and figures. Each page shall be counted except for the following: cover pages, table of contents, cross reference tables, glossaries, acronym lists, subcontractor/teaming agreements, past performance questionnaires, CPARS reports, transmittal letters, staffing plans, transition plans, resumes, and letter of commitments. Pages excluded from the page count must contain only material pertinent to the page heading or be blank and marked "Intentionally Left Blank." Every page, except those marked as blank, shall be numbered. If the proposal exceeds the page limit identified, the Government will remove all pages exceeding the specified page count from the back of the proposal prior to the evaluation.

L-3 VOLUME I - TECHNICAL PROPOSAL

The Technical Volume should be specific and complete. Legibility, clarity, and coherence are very important. Your responses will be evaluated against the Technical Factors defined in Section M, Evaluation Factors for Award. Factors 1-3 are all considered Technical factors: Factor 1: Technical Understanding, Capability, and Approach, Factor 2: Management Capability, and Factor 3: Personnel Qualifications.

Using the instructions provided below, provide as specifically as possible the actual methodology you would use for accomplishing/satisfying the technical capability factor.

(1) VOLUME ORGANIZATION

The Technical Volume shall be organized according to the following general outline:

- i. Introduction (2 Pages, max.)
- ii. Table of Contents
- iii. List of Tables and Drawings
- iv. Glossary
- v. Technical Proposal (50 Pages max. per factor)

a. FACTOR 1: TECHNICAL UNDERSTANDING, CAPABILITY, AND APPROACH

1. The Offeror shall demonstrate its specific knowledge, capability, and approach (for both Prime and Subcontractors) to perform all aspects of the requirements in accordance with Section C - Statement of Work (SOW)(Section J, RFP **Attachment 1 SOW**).

2. Technical Approach:

Offerors shall describe their technical approach to fulfilling all aspects of the SOW. The description shall reflect a clear understanding of the work and include the methods, tools, and processes the Offeror (and any subcontractors) will use to accomplish the tasks. Simply restating the SOW will not be sufficient and may result in a lower rating.

3.Experience and Capabilities:

Offerors shall detail their relevant technical experience and capabilities, including both prime and subcontractor contributions. The submission should highlight prior or ongoing efforts similar in scope, size, and complexity, clearly linking experience to the SOW requirements.

4.Supporting Evidence and Assumptions:

Proposals shall include specific examples and documentation of qualifications such as certifications, training, past contracts, joint research, and industry participation. Any assumptions or technical uncertainties should be identified with proposed resolutions.

b. Factor 2: Management Capability

1.Offeror shall demonstrate its approach and ability to effectively manage all efforts under this solicitation and resultant award. Topics shall include: controlling personnel, controlling utilization of resources, tracking deliverables, monitoring performance and obtaining Government feedback. Offeror shall describe processes to be used by Offeror's technical leadership to ensure specific subtasks are being performed effectively and efficiently.

2.Offeror shall provide an organization chart that demonstrates the location of this work in the Offeror's organization and demonstrate how this effort will receive sufficient corporate-level attention during performance. The plan shall describe the Offeror's corporate structure and ability to manage a high performing team, describe the procedures in place for monitoring and controlling costs, and also demonstrate that the Offeror will be successful in undertaking these management and cost control efforts.

3.Offeror shall provide a narrative description of your management strategy to manage this effort successfully including organizational structure, staffing plan, transition plan and critical management systems.

4.The Offeror's proposal shall demonstrate the capacity to routinely and rapidly respond to the general science, engineering, and support requirements of a research laboratory.

5.The Offeror's proposal shall detail the sufficiency of the Offeror's staff to accommodate program changes within the scope of the SOW.

6.The Offeror's proposal shall detail the Offeror's management plan, which should include a description of how the different tasks can be effectively and efficiently managed with minimum demands upon Government personnel. It should include, as applicable: management experience and involvement, quality control, risk management, systems engineering, hardware development, configuration management and subcontract management.

7.The Offeror shall also provide a narrative description of its management experience on projects with scientific, engineering and technical efforts similar to those required in the SOW. This description should clearly demonstrate how the contractor's management plan defines the company's management efforts resulted in its ability to meet performance requirements, cost, and schedule goals on projects of similar size and complexity.

8.Transition Plan: The Offeror's proposal shall detail the Offeror's strategy for assuring a smooth and effective transition between the Offeror's proposed personnel and the incumbent's personnel into the ongoing system development, maintenance, and operations efforts.

The proposed Transition Plan shall document:

- a. the Offeror's plan for the transition of personnel (contractor personnel shall have the necessary skill set and be able to execute on the first day of the contract, only acclimation/gaining familiarity with NRL is allowable, there is no budget for training);
- b.the Offeror's transfer of work control and information;
- c.the Offeror's compliance with NRL security regulations; and
- d.the Offeror's method for processing and assigning tasks during the phase-in/phase-out periods.

The proposed Transition Plan shall also address how the Offeror will implement adequate measures to coordinate communications with the Awardee and NRL staff in order to ensure minimal impact during the transition process. The proposal shall detail the Offeror's ability to complete all the transition activities within 90 days after contract award.

To ensure that Volume I is evaluated strictly on its merit, no cost information is to be included in this proposal.

c. Factor 3: Personnel Qualifications

1. The Offeror shall provide all personnel with the particular expertise and experience in accordance with Attachment 2 - Personnel Qualifications. The Offeror shall demonstrate its ability to provide qualified personnel with acceptable experience levels. The Offeror is instructed to propose utilizing the skill mix and labor categories identified in section L and Attachment 2. The Offeror is instructed to propose exactly the hours identified in Section L. The Offeror is instructed that any deviation from the total quantity of hours or deviation from the individual labor categories required hours will not be evaluated and will be ineligible for award.

2.Staffing Plan: The Offeror's proposal shall detail the Offeror's staffing plan for all proposed key personnel and non-key personnel. Only Key Personnel is required to be specifically identified by name in the staffing plan; all other proposed staff shall be identified by labor category. A list of the Government's minimum requirements for Key Personnel and the role they shall exhibit during the execution of this contract is included in Attachment 2.

All labor categories and the respective tasks shall cross-reference with SOW tasks. The Offeror is cautioned that staffing plans for individuals and all proposed tasks must

propose the same mix and number of hours as that of the cost proposal. Discrepancies between the labor mix identified in the technical and cost/price proposal may result in a lowering of the adjectival rating in the technical proposal or a cost realism adjustment.

The Offeror shall provide a mapping of any company-specific labor categories it, or one of its Subcontractors, proposes in the Staffing Plan to the Government labor categories defined in the Labor Category Qualifications provided as an attachment in Section J, if necessary. This mapping shall include a description, similar in detail to the Government labor categories, of the requirements/qualifications associated with each company-specific labor category contained in the Offerors Staffing Plan, including company-specific labor categories proposed by subcontractors.

The Staffing Plan Narrative shall describe how the proposed personnel have the required knowledge and capabilities to execute the proposed technical approach. When read together with the other parts of the Offeror's Technical and Management Volume, the Offeror's Staffing Plan should demonstrate the Offeror's ability to successfully meet the requirements of Section C herein. The Offeror shall not be penalized for use of Subcontractors, but shall describe in the narrative how the proposed team provides optimal balance between size, manageability, and support capability while maintaining an integrated approach.

The staffing plan shall include identified, contingent hire (candidate is not currently employed by the Offeror or major subcontractor, but is identifiable by documentary evidence), and unidentified (candidate is not currently employed by the Offeror or major subcontractor and documentary evidence is not available) employees. For any contingent hire personnel on the staffing plan, who do not currently work for the Offeror or major subcontractor, the Offeror shall provide documentary evidence of the individual's availability to support these requirements (e.g., work agreements, contracts, and letters of intent). Work agreements, contracts, letters of intent and other relatable staffing support documentation shall not count toward the Volume I page limitation.

3. The Offeror's proposal shall demonstrate the Offeror's ability to provide personnel to carry out the SOW in accordance with Attachment 1. Offeror's proposals shall document the following, specifically:

1. The experience and qualifications of proposed key personnel;
2. The availability of all personnel to support the effort on a full-time permanent basis (for all full-time employees only); and
3. The proposed key personnel's ability to span the total requirements (60 months).

The Offeror's proposed Key personnel must be currently employed by the Offeror or the Offeror must provide documentation showing their immediate availability upon contract award. A statement of commitment by the Offeror stating the proposed personnel will be committed to the effort in its entirety is required, the statement shall include the proposed percentages each will be performing against the resulting contract and shall be signed by all proposed key personnel not currently employed by the Prime Offeror. The Offeror's proposed key personnel shall be available for work efforts on the

first day of the contracts period of performance start date. The proposed non-key personnel shall be available for work efforts within two weeks of after the contracts period of performance start date.

The Offeror's Key Personnel commitment shall include names along with their labor category, proof may include commitment letters from Key Personnel or proof of current employment with the company. It is critical that the Offeror has properly committed key personnel with relevant experience and qualifications to complete the proposed work rather than just "corporate history" that does not transfer to the existing personnel who will perform the proposed work. Key personnel tasking levels shall be substantiated by name in the cost volume rather than generic labor categories. Resumes are required for all proposed key personnel.

A labor category crosswalk shall be provided if the names of the Offeror's proposed corporate labor categories differ from the RFP directed labor categories. The cross walk should be clear and traceable.

Key and Non-Key Personnel (See Section J, RFP **Attachment 2** – Personnel Qualifications):

4. Labor Mix

Labor Mix for N00173-25-R-2440							
		Year 1	Year 2	Year 3	Year 4	Year 5	Total
Labor Category	Quantity	Hours	Hours	Hours	Hours	Hours	Hours
Administrator 2	2	3,840	3,840	3,840	3,840	3,840	19,200
Systems Analyst 2	2	3,840	3,840	3,840	3,840	3,840	19,200
Systems Analyst 3	3	5,760	5,760	5,760	5,760	5,760	28,800
Systems Analyst 4	3	5,760	5,760	5,760	5,760	5,760	28,800
Systems Analyst 5	3	5,760	5,760	5,760	5,760	5,760	28,800
Database Engineer 2	2	3,840	3,840	3,840	3,840	4,107	19,467
Database Engineer 4	3	5,760	5,760	5,760	5,760	5,760	28,800
Database Engineer 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Database Engineer 5	1	1,920	1,920	1,920	1,920	1,920	9,600
Senior Program Analyst 4	2	3,478	2,991	3,281	3,572	3,840	17,162
Infrastructure Engineer 1	2	3,840	3,840	3,840	3,840	3,840	19,200
Infrastructure Engineer 2	2	3,840	3,840	3,840	3,840	3,840	19,200
Infrastructure Engineer 4	2	3,840	3,840	3,840	3,840	3,840	19,200
Infrastructure Engineer 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Infrastructure Engineer 5	1	1,920	1,920	1,920	1,920	1,920	9,600
Program Manager 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Program Manager 5	1	1,920	1,920	1,920	1,920	1,920	9,600
Systems Administrator 2	2	3,840	3,840	3,840	3,840	3,840	19,200
Systems Engineer 1	2	3,840	3,840	3,840	3,840	3,840	19,200
Systems Engineer 3	4	7,680	7,680	7,680	7,680	7,680	38,400

Systems Engineer 4	5	9,620	9,620	9,620	9,620	9,620	48,100
Systems Engineer 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Systems Engineer 5	3	5,760	5,760	5,760	5,760	5,760	28,800
Senior Systems Engineer 4	4	7,680	7,680	7,680	7,680	7,680	38,400
Senior Systems Engineer 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Senior Systems Engineer 5	3	5,760	5,760	5,760	5,760	5,760	28,800
Software Engineer 2	5	9,620	9,620	9,620	9,620	9,620	48,100
Software Engineer 3	5	9,620	9,620	9,620	9,620	9,620	48,100
Software Engineer 4	9	17,280	17,280	17,280	17,280	17,280	86,400
Software Engineer 5 (KEY)	1	1,920	1,920	1,920	1,920	1,920	9,600
Software Engineer 5	3	5,760	5,760	5,760	5,760	5,760	28,800
Test Engineer 3	2	3,840	3,840	3,840	3,840	3,840	19,200
Test Engineer 4	1	1,940	1,940	1,940	1,940	1,940	9,700
Test Writer 3	2	3,840	3,840	3,840	3,840	3,840	19,200
IT Help Desk Support Specialist 1	1	1,940	1,940	1,940	1,940	1,940	9,700
Total	86	164,858	164,371	164,661	164,952	165,487	824,329

The level of effort for all personnel shall not exceed the total LOE of **824,329** for the duration of the period of performance of 5 years.

L-4 VOLUME II - PAST PERFORMANCE - Factor 4

(1) VOLUME ORGANIZATION

The Past Performance Volume shall be organized according to the following general outline:

- i. TABLE OF CONTENTS
- ii. GLOSSARY
- iii. INTRODUCTION
- iv. SECTION I - PAST PERFORMANCE QUESTIONNAIRES AND TRANSMITTAL LETTERS
- v. SECTION II - PREVIOUS CONTRACTING NARRATIVES

Past Performance Volume II shall be specific and complete.

The Government reserves the right to use contract performance data provided in the Offeror's proposal and additional contract performance data obtained from other sources, such as the Government's Contractor Performance Assessment Reporting System (CPARS) database, personnel knowledge and from the points of contact identified by the Offeror in its proposal.

(2) SECTION I: RECENT AND RELEVANT PAST PERFORMANCE QUESTIONNAIRE

Offeror's shall provide NRL Past Performance Questionnaires and/or CPARs reports with their proposal (attached to the RFP) for no more than five relevant efforts within the last five (5) fiscal years as of the date of this solicitation release.

The contracts identified should demonstrate in-depth knowledge and successful implementation of contracts of similar scope and complexity to this solicitation. Similar scope and complexity means having performed the types of support efforts identified in the Statement of Work for this solicitation. The identified contracts can be with Federal, Commercial, or other customers. For each contract, the Offeror shall identify at least one of the following customer:

Points of Contact (POCs): Program Manager (PM), Procuring Contracting Officer (PCO), Contracting Officer's Technical Representative (COTR) or Contracting Officer's Representative (COR). The Offeror shall provide the current address, phone number, and e-mail address for each POC.

Offeror shall submit one (1) Past Performance Questionnaire, provided as Attachment 3 in Section J, to each of its customer POCs identified in the Recent and Relevant Past Performance References. In order to expedite the assessment process, the Offeror may complete the "Contract Information" portion of the Past Performance Questionnaire for the convenience of the customer POC. The Offeror shall not, however, complete any other section of the Past Performance Questionnaire. The questionnaire shall be provided to the customer POC with instructions to complete and submit it directly to the Contracting Specialist, Candice Tawiah, at candice.a.tawiah.civ@us.navy.mil on or before the proposal due date. Electronic submission is required. The Offeror's past performance volume shall contain copies of the first page of the Customer's Questionnaire and the transmittal letters.

The Government reserves the right to limit or expand the number of references it decides to contact and to contact other references than those provided by the Offeror. The Government reserves the right to consider any questionnaire received after the due date and contact those offices that do not respond to the questionnaire.

(3) SECTION II: PREVIOUS CONTRACTING EFFORT NARRATIVES

For each of the Past Performance Questionnaires and/or CPARs reports submitted, the Offeror shall also provide a Previous Contracting Effort Narrative detailing the following information in Volume II:

- i. Describe how the effort for this past contract/task order relates to this acquisition in scope, size, and complexity.
- ii. Describe significant achievements, challenges, or obstacles that were encountered during contract performance and the measures taken to overcome them.
- iii. Provide performance criteria/measures that were applied in evaluating performance, for each contract identified. The performance criteria/measures should be specific and show the target performance levels that are/were set forth under the applicable contracts as well as the level of performance achieved, for the most recent period of performance of each contract.

NOTE: The Government reserves the right to use contract performance data provided in the Offeror's proposal, and additional contract performance data obtained from other sources, such as the Government's CPARS database, personnel knowledge and from the points of contact identified by the Offeror in its proposal. The Government reserves the

right to use this information in part and whole for both the Prime Offeror and any/all subcontractors. The Government will review the overall Past Performance picture before making an award decision and this section will be evaluated accordingly.

L-5 VOLUME III - SMALL BUSINESS PARTICIPATION - FACTOR 5

All offerors that submit proposals as a prime contractor are required to propose on the extent of their inclusion of small businesses in the performance of the contract, including: other small businesses, small disadvantaged businesses, women-owned small businesses, historically under-utilized business zones, veteran-owned small businesses and service-disabled veteran-owned small businesses. The Government's assessment of small business participation and commitment will be measured to determine if small business participation is maximized where applicable. The small business participation plan addresses the extent of small business utilization in the performance of a contract as outlined in DFARS 215.304(c)(i). The small business participation plan outlines the "specifics," the "how" or the "details" of the offeror's firm intentions to maximize the utilization of small businesses within this acquisition. The offeror shall articulate small business contributions at the prime contract and first tier subcontract level. Second, third and subsequent tier small business subcontractors will not be considered towards the total small business participation percentage.

All offerors, including small businesses and those who are DoD Comprehensive Test Program participants, shall submit a small business participation plan as part of their proposal. As a part of the Participation Plan, a Small Business Participation Commitment Document (See Section J, RFP **Attachment 5**) will be incorporated into the contract award. In accordance with DFARS 215.304(c)(i), small business participation is an evaluation factor under Section M of this solicitation, Factor 5.

Offerors shall address the following elements in their small business participation plan and must demonstrate their proposed approach as to how they will meet or exceed all stated small business participation requirements for this contract. The Small Business Participation Plan shall not reference any other volume for information. All information required within the Small Business Participation Plan must be contained within this document. The offeror's proposed small business participation plan shall address the following elements:

1. The extent of participation of small business firms (including those in socioeconomic categories as defined in FAR Part 19) as a percentage of the total acquisition value: Identify company name, socioeconomic category (if applicable), products/services, nature of commitment, dollar value and percent of TAV of the small business utilization planned for this acquisition. For calculating small business participation goals and dollar values, the "Total Acquisition Value" (TAV) is the offeror's total proposed cost/price for the entire period of performance. The Government must be able to verify that each percentage is based on the total acquisition value. Small business prime offerors can count work self-performed as part of its small business participation, and work performed by small businesses that qualify in multiple socioeconomic categories may be counted in each category. If the Offeror submits zero

percentages, the Offeror shall provide a detailed explanation to address how the Offeror will attempt to achieve small business participation where zero percentages are presented.

2. Description of the complexity and variety of work each small business will perform under the contract.
3. Description of the type of agreements and/or commitments to use small business firms under the contract (this includes purchase orders, teaming agreements, letters of commitment, etc.). Offerors are encouraged to provide actual agreements and/or commitments to use other small business firms.
4. Description of specific initiatives and strategies that will be used under the contract to enhance small business utilization and capabilities (including those in socio-economic categories).
5. Description of the process used to ensure proper flow down of requirements, process management and performance assessments of small business utilization at the first tier subcontract level.

L-6 SMALL BUSINESS SUBCONTRACTING PLAN

Not applicable, this procurement is a small business set-aside.

L-7VOLUME IV - COST PROPOSAL - FACTOR 6

(1) VOLUME ORGANIZATION

The Cost Volume shall be organized according to the following general outline, at a minimum:

- i. Table of Contents
- ii. Glossary
- iii. Introduction
- iv. Cost Proposal

(2)

- a. A narrative by cost element
- b. Contractor completed RFP Cost Proposal Spreadsheet

ii. Supporting Documentation

a. Supporting documentation may include: Facilities cost of money calculation, signed Forward Pricing Rate Agreement (FPRA), Forward Pricing Rate Recommendation (FPRR), provisional billing rate agreement, payroll information, escalation calculation, approved accounting system, approved purchasing system, approved estimating system, indirect cost pool description, subcontractor cost

evaluations, subcontractor quotes, etc.

The Cost Volume IV - Microsoft Excel spreadsheets shall be organized in accordance with **Attachment 4** (additional sheets may be used). Edits to the spreadsheet to comply with an Offeror's accounting system/estimating practices are allowed but the Offeror's populated spreadsheet should maintain the formatting of all rows and columns as found in **Attachment 4**.

Offerors shall provide separate price information containing prices for each and every line item as designated in the solicitation and should ensure that all certifications and representations within Section K of the solicitation have been accurately completed

While the Government anticipates establishing reasonableness of pricing through adequate price competition and does not require submission of certified cost or pricing data, Offerors must provide clear and concise explanations of their pricing methodology and their labor and burden estimating practice and are cautioned against unbalanced and unrealistic pricing.

(3) COST INFORMATION

FAR 52.217-8 evaluation: The offeror shall include labor pricing for half the LOE and cost of CLIN 4001, plus any applicable escalation. The hours and cost associated with this are not included in the overall LOE, as this is included for evaluation purposes only. The cost proposed for this will not be included in the contract award price. Offerors should NOT include the cost for this in the submitted overall cost, but instead have it split out in a separate section. To assist the Government in determining cost reasonableness/realism for this effort, the Offeror shall provide sufficient detailed cost information with the proposal to make this determination. In preparing the cost proposal, it is essential that the Offeror breakout and identify separately for each year of the contract, the following types of cost elements listed below.

The following is a non-exclusive list which serves as an example of the various types of cost elements which may be applicable:

Direct Labor Costs:

(1) Information including the name, title, and actual hourly rate shall be provided by the Offeror for each individual proposed for the labor categories identified in Section L (Offerors who propose other than what is specified in the solicitation may be considered nonresponsive.) If the Offeror proposes direct labor rates based on a composite rate structure, then the Offeror should clearly identify the basis of the composite.

(2) If an Offeror's proposed labor category differs in name from those listed in Section L, a chart should be included which identifies how these categories correspond to the ones listed in the solicitation.

(3) The Offeror shall identify any escalation rates utilized in the preparation of their cost proposal, and should provide historical information pertaining to the actual escalation rate experienced over the past three (3) year period (if available, if the Offeror has less than three (3) years, provide as many as possible).

- (4) Offerors are reminded that the staff proposed in the technical proposal must be the same staff proposed in the cost proposal.
- (5) Offerors shall provide a narrative explaining how each proposed labor category pay rate is derived.
- (6) In the event a key person is proposed at less than full time, a narrative describing why shall be included.

Subcontracting Costs: The proposal shall include subcontract cost data in the same level of detail as provided for the Offeror. Any subcontracting costs shall be supported. It is the Offeror's responsibility to ensure that this support documentation is received by the Government within the timeframe (i.e. closing date) established for this solicitation.

Consultants: If applicable, provide a detailed listing of consultants expected to be used, rationale for selection and associated costs which are proposed for reimbursement. Include those items of costs associated with consultants (i.e. hour's proposed and hourly rate). A copy of the consultant agreement with the Offeror shall also be provided by the Offeror.

Indirect Rates: Offerors shall list the cost elements that comprise the overhead, general and administrative expenses, and the other indirect pools. All indirect rates shall be summarized. Offerors shall list proposed indirect rates, DCAA recommended rates, and historical actuals (audited and unaudited) for the past three (3) years. If proposed rates reflect negotiated forward pricing rates, a copy of the current forward pricing rate agreement shall be provided. If the rates are not negotiated forward pricing rates, then the basis for the proposed rates shall be explained. If the proposed rates are substantially different from the previous three (3) years of proposed and/or actuals, a narrative shall be included explaining.

Facilities Capital Cost of Money: If this cost element is proposed, the Offeror should provide information pertaining to the derivation of the FCCOM costs (i.e. FCCOM factors and application bases). FCCOM is non-fee bearing.

Fee: Identify the fee rate and total amount proposed and identify the various cost elements to which the fee is being applied.

Other Direct Costs: These costs represent material and travel costs. For proposal purposes, the estimated base amounts for support costs have been pre-established and specified in Section B. Offerors are required to clearly identify as part of their proposal any indirect markup rates (i.e. G&A and material handling) which will be applicable to base support costs. The proposed amount for CLINs identified as Other Direct Cost (ODC) CLINs in Section B, shall include the estimated base amount and the Offeror's proposed markup costs, which will be used for evaluation purposes. It is intended to reimburse support costs on the basis of actual reasonable and allowable costs. Lastly, it should be noted that all Other Direct Costs are non-fee bearing costs. The Offeror shall propose the Section B specified ODC amount in its proposal. The RFP specified amount is not inclusive of Indirect Rates. The Offeror shall add their Indirect Rates to the RFP specified ODC amounts.

ODC CLIN's 0002, 1002, 2002, 3002 and 4002 will be included in the total evaluated cost. ODC CLIN's will be cost-reimbursable (including appropriate indirects) and not include fee. ODCs will contain costs that are unique to the project that are presently unknown. ODC's do not include subcontractor labor and/or management costs.

For evaluation purposes of this solicitation, the contractor shall utilize the following data for ODC's CLIN's and part of the proposal in Section B (ODC CLIN's ONLY):

	CLIN 0002	CLIN 1002	CLIN 2002	CLIN 3002	CLIN 4002
Travel	\$ 200,000.00	\$ 210,000.00	\$ 215,000.00	\$ 225,000.00	\$ 230,000.00
Material	\$ 1,000,000.00	\$ 1,050,000.00	\$ 1,075,000.00	\$ 1,120,000.00	\$ 1,200,000.00
TOTAL ODC'S	\$ 1,200,000.00	\$ 1,260,000.00	\$ 1,290,000.00	\$ 1,345,000.00	\$ 1,430,000.00

Accounting System: In order to obtain a cost-reimbursement type contract, the Offeror's accounting system must be considered adequate by the Defense Contract Audit Agency (DCAA). Accordingly, an Offeror's cost proposal must provide information demonstrating their accounting system has been found to be (or is in the process of being found to be) adequate by DCAA. Subcontractors proposed on a cost basis must also have a DCAA approved accounting system, or a signed letter indicating that the subcontractor will utilize the Prime's accounting system.

Other required supporting documents: The following additional approvals/documents are required to be provided if applicable to the Offeror:

1. Purchasing system (FAR 44.304)
2. EEO Compliance (FAR 22.805)
3. Estimating system (DFARS 215.407-5)
4. VETS-4212 (FAR 22.1304)

OFFERORS AND EACH SUBCONTRACTOR ARE REQUIRED TO PROVIDE THE DCAA BRANCH OFFICE FOR THEIR COMPANY, WITH THE NAME, PHONE NUMBER, AND EMAIL ADDRESS OF A COGNIZANT DCAA POINT OF CONTACT WHO IS FAMILIAR WITH THEIR COMPANY. THE CONTRACTOR IS REQUIRED TO PROVIDE AN EXPLANATION IF KNOWN DISCREPANCIES EXIST BETWEEN THE CONTRACTOR'S PROPOSED COSTS AND DCAA RECOMMENDATIONS.

(4) GENERAL INSTRUCTIONS

1. As part of the Cost Proposal submission, the Contractor is required to provide all pertinent supporting information to support proposed direct labor rates (DCAA Audit or rate check information, payroll data, salary.com survey, etc.) to facilitate the cost realism analysis of proposed direct labor rate and all indirect rates (i.e. G&A, Overhead, etc.).
2. Offerors are cautioned that proposals unrealistically high or low in cost may be deemed reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work, and may be

grounds for rejection of the proposal.

L-8 VOLUME IV - CONTRACT INFORMATION

(1) VOLUME ORGANIZATION

The Contract Information Volume IV shall be organized according to the following general outline:

- i. Table of Contents
- ii. Glossary
- iii. Introduction
- iv. Contract Information

(2) CONTRACT DOCUMENTATION

SECTION A: SOLICITATION/CONTRACT FORM

The Contractor shall complete blocks 15 and 16, and sign and date blocks 17 and 18 of the solicitation. Signature by the Offeror on the solicitation constitutes an offer, which the Government may accept. The "original" copy should be clearly marked separately and should be provided without any punched holes.

The Offeror shall make a clear statement in Section A of the proposal documentation volume that the proposal is valid 180 days from the date of the solicitation closing date. Also, include all amendments signed.

SECTION B: SUPPLIES OR SERVICES AND PRICES/COSTS

Refer to Section B of the solicitation and complete fill-ins.

SECTION H: SPECIAL CONTRACT REQUIREMENTS

Offeror's shall make an affirmative statement that no OCI exists, if applicable.

SECTION K: REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENT OF OFFEROR'S

Completed representations, certifications, acknowledgements, and statements.

SECTION L: INSTRUCTIONS TO OFFEROR'S

Any information required to be submitted regarding assertions.

OTHER: SECURITY REQUIREMENTS

Offeror shall provide proof of compliance of all security requirements set forth in the DD254 Attachment.

L-9 POTENTIAL ORGANIZATIONAL CONFLICTS OF INTEREST

Pursuant to FAR 9.5 and the definitions provided therein:

Definitions: Organizational Conflict of Interest: FAR 2.1 defines "Organizational Conflict of Interest" as a situation in which "...because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage." For the purposes of this contract, the term Organizational Conflict of Interest means that a relationship exists between the Contractor (including

the successor- in-interest, assignee or affiliated divisions, subsidiaries, employees, Consultants, or Subcontractors, hereinafter referred to as "Contractor") and another in which the underlying interests of the Contractor and the other party directly or indirectly (1) may influence, affect or diminish the Contractor's ability to give impartial, technically sound, objective assistance, conclusions, advice or recommendations, or may otherwise result in a biased work product to or for the Government, or (2) may result in an unfair competitive advantage.

Purpose: The primary purpose of this clause is to ensure that the Contractor (1) does not obtain an unfair competitive advantage over other parties by virtue of its performance of this contract, and (2) is not biased because of its current or planned interests (financial, contractual, organizational or otherwise) which relate to the work under this contract.

Description of the Effort: This contract is for Research and Development services in support of various NRL Programs. In the performance of this contract, the Contractor may be required to make certain findings, conclusions and recommendations to the Government. The Contractor may also be required to have access to other Contractor's proprietary data in order to make those findings, conclusions and recommendations to the Government. Because the Government requires total objectivity and impartiality in performance of this contract, the Contractor must be free from any biased influences and interests, which will affect, directly or indirectly, on the Contractor's decision-making process.

Disclosure Statement: Offeror's shall submit a statement within its cover letter in affirmation or negation whether they have an OCI conflict regarding this solicitation. If the Offeror is aware of circumstances that may hinder its ability to render impartial, technically sound, and unbiased assessments, recommendations and/or evaluations; or that circumstances exist that may result in the appearance that it may have any unfair competitive advantage, the Offeror shall provide a full disclosure statement. The statement must describe, in a concise manner, all relevant facts concerning any past, present, or currently planned interest (financial, contractual, organizational, or otherwise) relating to the work to be performed hereunder and bearing on whether the Offeror has a possible organizational conflict of interest with respect to: (1) impartial, technically sound, and unbiased assessments, recommendations and/or evaluations, or (2) being given an unfair competitive advantage. Prospective Offeror's should refer to FAR 9.5 for policies and procedures for avoiding, neutralizing, or mitigating organizational conflicts of interest. If the Offeror is not aware of any circumstances of this nature, then the Offeror shall provide a statement stating such.

All such information and any other relevant information will be used by the Government to determine whether an award to the Offeror may create an organizational conflict of interest. The Government's determination regarding the adequacy of the mitigation plan or the possibility of mitigation is a unilateral decision made prior to contract award. The Government may terminate the contract for default if the Contractor fails to implement and follow the procedures contained in any approved mitigation plan.

The refusal to provide the disclosure of any additional information as required may result in disqualification of the Offeror for award. The nondisclosure or misrepresentation of any relevant interest may also result in the disqualification of the

Offeror for award, or if such nondisclosure or misrepresentation is discovered after award, the Government may terminate the contract for default, recommend that the Contractor be disqualified from subsequent related contracts, or be subject to such other remedial actions as may be permitted or provided by law. The attention of the Offeror in complying with this provision is directed to 18 U.S.C. 1001 and 31 U.S.C. 3802(a)(2).

Depending on the nature of the contract activities, the Offeror may, because of possible organizational conflicts of interest, propose to exclude specific kinds of work from the statement, unless the solicitation specifically prohibits such exclusion. Any such proposed exclusion by an Offeror shall be considered by the Government in the evaluation of proposals, and if the Government considers the proposed excluded work to be an essential or integral part of the required work, the proposal may be rejected as unacceptable.

No award shall be made until the disclosure has been evaluated by the Government. Failure to provide the disclosure will be deemed to be a minor informality and the Offeror or Contractor shall be required to promptly correct the omission.

If the Contracting Officer determines that a potential conflict exists, the prospective Offeror shall not receive an award unless the conflict can be avoided or otherwise resolved through the inclusion of a special contract clause or other appropriate means, i.e., Government approved OCI mitigation plan.

Offeror's shall make an affirmative statement that no OCI exists, if applicable.

L-10 INQUIRIES CONCERNING THE RFP

Any questions concerning the RFP must be submitted in writing to the Contract Specialist, Candice Tawiah, candice.a.tawiah.civ@us.navy.mil within 15 days of RFP issuance. Offeror's are not to direct any questions concerning this RFP to technical personnel at the Naval Research Laboratory.

L-11 SECURITY REQUIREMENTS

Access to classified information is not required to submit a proposal for this statement of work. However, prospective Offeror's shall have the required facility clearance in accordance with attached DD254 (Section J, RFP **Attachment 6** DD254 Draft) at the time of proposal and personnel available with final DoD granted personnel security clearances required for performance of the contract.

The Naval Research Laboratory (NRL) Cognizant Senior Intelligence Officer (SIO) has exclusive security responsibility for all Sensitive Compartmented Information (SCI) classified material released to or developed under the contract. Access to SCI Intelligence material requires adherence to the requirements set forth in the following: Department of Defense (DoD) Manual (DoDM) 5105.21, Volume 1, SCI Administrative Security Manual: Administration of Information and Information Systems Security; DoDM 5105.21, Volume 2, SCI Administrative Security Manual: Administration of Physical Security, Visitor Control, and Technical Security; DoDM 5105.21, Volume 3, SCI Administrative Security Manual: Administration of Personnel Security, Industrial Security, and Special Activities; ICD 403, Foreign Disclosure and Release of Classified National Intelligence; ICD 701, Security Policy Directive for Unauthorized Disclosures of Classified Information; ICD 703 Protection of Classified

National Intelligence Including Sensitive Compartmented Information; ICS 703-02, Reporting Requirements for Individuals with Access to Sensitive Compartmented Information; ICS 703-03, Protection of Classified National Intelligence Including SCI Shared with Entities Outside the Intelligence Community; ICS 703-04, Foreign Ownership, Control, or Influence (FOCI); ICD 710, Classification Management and Control Markings Systems; ICPG 710.1, Application of Dissemination Controls: Originator Control (ORCON); DoD 5220.22-M, Change 2, National Industrial Security Program Operating Manual (NISPOM); DoDM 5200.01, Volumes 1-4, DoD Information Security Program; and Security Executive Agent Directive (SEAD) 3, Reporting Requirements for Personnel with Access to Classified Information or who hold a Sensitive Position. Contractor's will comply with all regulations/manuals/directives stated therein which provide the necessary security and classification guidance for personnel, information, physical, automated information security (AIS), and technical security measures and is a part of the SCI security specifications for the contract. Inquiries pertaining to SCI classification guidance or interpretations shall be directed to the Contracting Officer/Contracting Officer Representative (COR) identified on the attached DD Form 254. Requirements for access to SCI:

- a. All SCI will be handled in accordance with special security requirements, which will be furnished by the NRL Special Security Officer (SSO).
- b. SCI will not be released to contractor employees without specific release approval of the originator of the material as outlined in governing directives; based on prior approval and certification of "need-to-know" by the designated COR.
- c. The contractor must restrict access to only those individuals who possess the necessary security clearance and who are actually providing services under the contract with a valid need to know. Further dissemination to other contractors, subcontractors, other government agencies, private individuals or organizations is prohibited unless authorized in writing by the originating agency through the COR.
- d. Names of contractor personnel requiring access to SCI will be submitted to the COR for approval. (The COR is identified on the DD Form 254.) Upon receipt of written approval from the COR, the company security officer will submit request(s) for special background investigations, in accordance with the NISPOM, to the Defense Security Service (DSS).
- e. SCI material must not be released to foreign nationals or immigrant aliens whether they are consultants, U.S. contractors, or employees of the contractor and regardless of the level of their security clearance, except with advance written permission from the originator. Requests for release to foreign nationals shall be initially forwarded to the COR and shall include:
 - i. A copy of the proposed disclosure.
 - ii. Full justification reflecting the benefits to U.S. interests.
 - iii. Name, nationality, particulars of clearance, and current access authorization of each proposed foreign national recipient.

- f. Contractor personnel must maintain accountability for all intelligence materials released to their custody.
- g. SCI material will not be reproduced without prior approval of the originator of the material. All SCI material shall bear a prohibition against reproduction while in the contractor's custody.
- h. Inquiries pertaining to classification guidance on SCI will be directed through the CSSO to the responsible COR as indicated on the DD Form 254.
- i. SCI released to cleared-DoD Contractors, all reproductions thereof, and all other information generated based on, or incorporating data from, in support of this contract, remains the property of the U.S. Government. Upon completion or cancellation of the contract, all SCI material furnished will be returned to the direct custody of the supporting SSO, or destroyed IAW instructions outlined by the COR.
- j. SCI will be stored and maintained only in properly accredited facilities meeting the physical security requirements in ICD 705, SCI Facilities and ICS 705, Technical Specifications for Construction and Management of SCI Facilities.
- k. The NRL SSO will recognize the above noted estimated completion date (ECD) as the completion date for the contract. The SSO will initiate action to debrief contractor personnel with access to this contract unless extensions or modifications to the contract are received by the SSO office no later than 30 days after the established completion date.
- l. The contractor is governed by ICD 704, 'Personnel Security Standards and Procedures Governing Eligibility for Access to Sensitive Compartmented Information (SCI) And Other Controlled Access Program Information' and may be supplemented by SSO Navy. Contractor personnel, assigned to this contract, that are eligible for access to SCI or currently possess an SCI personnel security clearance with another non-DoD agency must have their SCI eligibility adjudicated by the DoD Consolidated Adjudications Facility (CAF) prior to having access to SCI information retained by Naval Research Laboratory, unescorted access to Naval Research Laboratory spaces, and receipt of an Naval Research Laboratory issued contractor badge. The contractor will identify, in writing, contractor personnel assigned to this contract by NAME, SSN, Date and Place of Birth, and provide this documentation to the CO/COR identified on the DD 254. The CO/COR will identify the SCI caveats for the contract and forward a copy of this documentation to the SSO for processing. This documentation will be marked and protected under the Privacy Act of 1974.
- m. Electronic processing of SCI must be accomplished on equipment accredited in accordance with DoDM 5105.21 Volumes 1- 3, ICD 503, Information Technology System Security Risk Management, Certification and Accreditation, and the DoDIIS Joint Security Implementation Guide (DJSIG), Appendix D.
- n. SCI security management issues shall be directed to Oscar A. Barrow, NRL Code 1232, (202) 767-0862.
- o. In accordance with Director of National Intelligence Memorandum 5 May 2017,

Access to North Atlantic Treaty Organization (NATO) Information by Intelligence Community (IC) Personnel and Naval Intelligence Security Policy Directive 17-008 Revision, Mandate for North Atlantic Treaty Organization (NATO) Information by Intelligence Community (IC) Personnel, all DoN Contractors with SCI access and access to JWICS or SIPRNet must be briefed into NATO Secret Information.

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L-1 INSTRUCTIONS FOR SUBMISSION OF PROPOSALS/OFFERS

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Alternate I)	Nov 2021	Alternate I	Oct 1997
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Oct 2009		
52.222-46	Evaluation of Compensation for Professional Employees.	Feb 1993		
52.237-1	Site Visit.	Apr 1984		
52.237-10	Identification of Uncompensated Overtime.	Mar 2015		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.225-7003	Report of Intended Performance Outside the United States	Jan 2025		

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

52.215-1 Instructions to Offerors-Competitive Acquisition. (Nov 2021)

INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION (NOV 2021)

(a) *Definitions.* As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations*. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (*e.g.*, electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show-

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date.* Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate IV) (Nov 2021) Alternate IV (Oct 2010)

Alternate IV (Oct 2010). As prescribed in 15.408 (l), replace the text of the basic provision with the following:

(a) Submission of certified cost or pricing data is not required.

(b) Provide data described below: *if deemed required, provide any other supporting cost data in electronic format [Insert description of the data and the format that are required, including the access to records necessary to permit an adequate evaluation of the proposed price in accordance with 15.403-3.]

52.216-1 Type of Contract. (Apr 1984)

TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Cost Plus Fixed Fee [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest. (Sep 2006)

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from CDR Callan Walshcallan.t.walsh.mil@us.navy.mil. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov [Insert one or more Internet addresses]

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any ____ [insert regulation name] (48 CFR Chapter ____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable, data to include any supportive cost data such as DCAA audits, historical pricing, payroll data, etc. [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification*].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: See Section L and M [Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

(End of provision)

Section M - Evaluation Factors for Award

M-1 Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.217-3 Evaluation Exclusive of Options.

(Apr 1984)

EVALUATION EXCLUSIVE OF OPTIONS (APR 1984)

The Government will evaluate offers for award purposes by including only the price for the basic requirement; *i.e.*, options will not be included in the evaluation for award purposes.

(End of provision)

Section M - Evaluation Factors for Award

M-1 EVALUATION FACTORS

Basis for Award

The Offerors proposal must comply in all material respects with the requirements of the law, regulation and conditions set forth in this solicitation. The proposal must meet all Solicitation requirements.

The Government anticipates a single award resulting from this solicitation. The award decision will be based on the Government's evaluation of each Offeror's complete proposal against the evaluation Factors identified below. In accordance with FAR 52.215-1(f)(c), which provides that award will be made to the responsible Offeror(s) whose proposal represents the best overall value to the Government after evaluation based on the Factors described herein. Best value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement (FAR 2.101). A best value analysis will not be performed or developed for any Offeror whose proposal is found to be technically unacceptable or unsatisfactory in Factors 1-3. A proposal receiving an unacceptable under Factors 1-3 will render the Offeror ineligible for award.

A tradeoff analysis may be used when it is in the best interest of the Government to consider award to other than the lowest Total Evaluated Price (TEP) Offeror or other than the highest technically rated Offeror. In order to select the successful Offeror, the Government will compare the Offerors proposal volumes. The comparison will trade off differences in technical capability based on the non-cost factors and cost factors. If an Offeror has the better technical capability and a higher TEP, the Government will decide whether the difference in technical capability is worth the difference in price. If it is determined that the difference in technical capability is worth the difference in price, then the more capable, higher-priced Offeror will be the better value. If not, then the less capable, lower-priced Offeror will be the better value.

The Government may limit the breadth of the cost realism analyses to those Offeror and subcontractor proposals, respectively, that represent the most likely candidates for award based on information derived from the technical evaluation and relative cost comparison. If an Offeror has a lower technical rating than competing Offerors and a higher proposed cost, the Government may elect not to perform a cost realism analysis on said Offeror's proposed cost as the cost realism analysis will only result in upward adjustments to the proposed cost thereby further removing the Offeror's proposal from the most likely candidates for award.

Award will only be made to an Offeror that has no organizational conflict of interest as defined in FAR 9.5 or that the Government determines has provided a satisfactory mitigation plan in accordance with Section L. Offerors are advised that technical proposals may be evaluated without consideration of any proposed Subcontractor which is deemed to have an organizational conflict of interest and for which an unsatisfactory mitigation plan has been proposed. Failure by an Offeror that has identified a potential OCI or to submit an OCI mitigation plan with its proposal shall no longer being considered for award. Prior to award, the Government will review any submitted OCI mitigation plan and make a determination as to whether the plan adequately meets the issues and provides adequate protection to both the company and the Government.

The Government will evaluate each Offeror's proposal in accordance with the factors contained in Section L and listed below to determine the best value proposal. The evaluation factors represent key areas of importance to be considered in the source selection decision. The factors, , and associated elements have been chosen to support meaningful discrimination between and among competing proposals. As demonstrated in each proposal, a prospective Offeror shall be evaluated in terms of its ability to meet or exceed the program's requirements stated in the SOW. Each proposal shall be evaluated in accordance with the factors listed in the table below:

Evaluation Factors
1. Technical Understanding, Capability, and Approach
2. Management Capability
3. Personnel Qualifications
4. Past Performance
5. Small Business Participation
6. Cost/Price

Proposals will be evaluated in accordance with the following criteria:

Factor 1 - Technical Understanding, Capability, and Approach, Factor 2 - Management Capability, and Factor 3 - Personnel Qualifications are equally important.

Factor 1 - Technical Understanding, Capability, and Approach, Factor 2 - Management Capability, and Factor 3 - Personnel Qualifications are each more important than Factor 4 - Past Performance, Factor 5 - Small Business Participation, and Factor 6 - Cost/Price.

Factor 4- Past Performance and Factor 5- Small Business Participation are weighted equally, and when combined are more important than Factor 6 – Cost/Price.

Evaluation Factors 1-5 when combined, are significantly more important than Factor 6, Cost/Price. However, as non-price factors become closer in perceived value, price considerations will become more important. Trade-off considerations may result in the determination that it is in the best interest of the Government to award to other than the lowest priced Offeror or other than the highest technically rated Offeror.

To be considered for award, a rating of no less than “Acceptable” must be achieved for Factors 1 - 3. An “Unacceptable” evaluation rating for Factors 1-3 will result in an “Unacceptable” for the entire proposal and will render the Offeror ineligible for award and no further analysis will be conducted.

Technical proposals that are unrealistic in terms of technical commitment will be deemed reflective of an inherent lack of technical competence or indicative of failure to comprehend the complexity and risk involved in the contract requirements and may be grounds for rejection of the proposal.

M-2 EVALUATION OF FACTORS

FACTOR 1: TECHNICAL UNDERSTANDING, CAPABILITY, AND APPROACH

Offerors' proposals will be evaluated on the Offeror's demonstrated understanding of the requirements in accordance with Attachment 1 - Statement of Work.

The evaluation will consist of a review of:

1. The degree to which the Offeror's technical proposal clearly demonstrates the capability, knowledge and approach, for both Prime and Subcontractors in performing all aspects of the SOW.
2. The degree to which the Offeror demonstrates an overall understanding of the scope of work and provides an approach to performing the tasks described in the RFP
3. The Offeror's size, scope, and complexity, as well as demonstrated knowledge, experience, capability, and approach (for both Prime and Subcontractors) to perform all aspects of the tasks in accordance with the Statement of Work.
4. That sufficient detail was provided to complete an accurate evaluation of the technical proposal.
5. The degree to which the Offeror's technical proposal identifies technical uncertainties and assumptions and how adequately they address the resolution of them.
6. The degree to which the Offeror has experience with relevant projects in the areas required by the SOW.

FACTOR 2: MANAGEMENT CAPABILITY:

The proposal will be evaluated on the Offerors' demonstrated capacity to routinely and rapidly respond to the general science, engineering, and support requirements of a research laboratory.

The proposal will be evaluated on the sufficiency of the Offerors' ability to accommodate program changes within the scope of the SOW.

The proposal will be evaluated on the Offeror's management plan, which should include a description of how the different tasks can be effectively and efficiently managed with minimum demands upon Government personnel.

The proposal will also be evaluated on the Offeror's strategy for assuring a smooth and effective transition between the Offeror's proposed personnel and the incumbent's personnel into the ongoing system development, maintenance, and operations efforts.

The proposed Transition Plan will be evaluated on:

- a. a plan for the transition of personnel (contractor personnel shall have the necessary skill set and be able to execute on the first day of the contract, only acclimation/gaining familiarity with NRL is allowable, there is no budget for training);
- b. the transfer of work control and information;
- c. complying with NRL security regulations; and
- d. the method for processing and assigning tasks during the phase-in/phase-out periods.

The plan shall address how the Awardee will implement adequate measures to coordinate communications with the Awardee and NRL staff in order to ensure minimal impact during the transition process. The proposal will be evaluated on the Offeror's ability to complete all the transition activities within 90 days after contract award.

FACTOR 3: PERSONNEL QUALIFICATIONS

The proposals will be evaluated on the Offeror's demonstrated ability to provide personnel in accordance with Attachment 2 -

Personnel Qualifications to carry out the SOW. The evaluation will consist of a review of the personnel qualification information provided by the Offeror, specifically in the following areas:

1. The experience and qualifications of proposed key personnel;
2. The availability of all personnel to support the effort on a full-time permanent basis (for all full-time employees only); and
3. The proposed key personnel's availability to span the total requirements (60 months).

The evaluation of this factor will cover the qualifications of all proposed KEY personnel and the availability of all other proposed personnel; missing a minimum or required qualification shall be deemed as a deficiency.

The proposed Staffing Plan will be evaluated on:

1. Completeness of proposed labor category taskings and cross referencing of labor categories to the appropriate SOW tasking's.
2. Offeror's proposed mapping of any company-specific labor categories with solicitation labor categories and their requirements/qualifications, if applicable.
3. Offeror's Proposed key personnel's knowledge and capabilities to execute the proposed technical approach.
4. How the Offeror's proposed team provides the optimal balance between size, manageability, and support capability while maintaining an integrated approach.
5. Completeness of contingent hire documentation.

All key personnel are required to have a TS-SCI at the time of proposal submission.

M-3 EVALUATION RATING CRITERIA

(1) FACTOR 1,2, and 3: TECHNICAL/MANAGEMENT/PERSONNEL CAPABILITY ADJECTIVAL RATINGS

The Government will perform an analysis of the three technical factors: Factor 1- Technical Understanding, Capability, and Approach, Factor 2 – Management Capability, and Factor 3 – Personnel Qualifications, and assign an adjectival rating to each factor as identified below. This evaluation focuses on strengths, weaknesses, significant weaknesses, deficiencies, and risks of the Offeror's proposal, resulting in the assignment of an adjectival rating at the factor level. Risk assessments will be performed as to the risk of successful performance within each factor. Responses will be evaluated in terms of quality, depth, and relevance of information presented in response to this solicitation. It should be noted that proposals found to be unacceptable in any non-cost factor may result in the entire proposal being deemed Unacceptable.

The following adjectival ratings and rating definitions will be used for each of the three technical factors 1,2, and 3.

Table 1. Evaluation Definitions

Term	Definition
Strength	an aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance
Weakness	a flaw in the proposal that increases the risk of unsuccessful contract performance
Significant Weakness	a flaw that appreciably increases the risk of unsuccessful contract performance
Deficiency	a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level

Table 2. Combined Technical/Risk Ratings to be used for Factors 1, 2, and 3:

Color Rating	Adjectival Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high.

Only One Offeror Evaluation Criteria:

In the event only one proposal is received in response to the solicitation, the evaluation criteria for the Technical Factor will change to the following:

Adjectival Rating	Description
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high.

M-4 FACTOR 4: PAST PERFORMANCE

Past performance is a measure of the degree to which the Offeror satisfied its customers in previous relevant contracts and complied with Federal, State, and local laws and regulations.

The Government will evaluate CPAR reports, Past Performance Questionnaires and Previous Contract Effort Narratives, and may contact some of each Offeror's customers to ask whether or not they believe: (1) that the Offeror is capable, efficient and effective; (2) that the Offeror's performance conformed to the terms and conditions of its contract; (3) that the Offeror was reasonable and cooperative during performance; (4) that the Offeror was committed to customer satisfaction; and (5) if given a chance would they select the same or a different Contractor.

The Government may consider past performance information obtained from sources other than those identified by the Offeror, including Federal, State, and local Government agencies, Better Business Bureaus, published media and electronic databases. The lack of recent and relevant past performance information will result in the assignment of a neutral rating (i.e. neither favorable nor unfavorable) for this factor.

(1) Past Performance Evaluation

The past performance evaluation results in an assessment of the Contractor's probability of meeting the solicitation requirements, The past performance evaluation considers each Contractor's demonstrated recent and relevant record of performance in supplying products and services that meet the Government's requirements. One performance confidence assessment rating is assigned for each Contractor after evaluating the Contractor's recent past performance, focusing on performance that is relevant to the Government's requirements. There are three (3) aspects to the Past Performance evaluation: Recency, Relevancy (including context of data), and Quality (including general trends in Contractor performance and source of information).

1. Recency: The first aspect is to evaluate the recency of the Offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant, and is critical to establishing the relevancy of past performance information. Offerors shall provide Past Performance references from the past five (5) fiscal years. Include any current contracts or subcontracts for similar services that were awarded at least one year prior to the date of this solicitation. Contractors that have no similar previous or current awards should provide the following information for proposed subcontract that will perform major or critical aspects of the requirement.

- 1. Name of contracting organization.
- 2. Contract number
- 3. Contract type
- 4. Total contract value
- 5. Description of the contract work
- 6. Contracting officer and telephone number
- 7. Contracting officer's representative, program manager, or similar official and telephone number

2. Relevancy: The second aspect of the past performance evaluation is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. Present/past performance effort should demonstrate scope and magnitude of effort and complexities this solicitation requires. In establishing what is relevant for the acquisition, consideration should be given to those aspects of a Contractor's contract history that would give the greatest ability to measure whether the Contractor will satisfy the current procurement. Common aspects of relevancy include similarity of service/support, complexity; dollar value, contract type, and degree of subcontract/teaming. Relevancy ratings are based on the definitions below:

Table 3: Past Performance Relevancy Ratings

Ratings	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

3. Quality: The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance (see FAR 15.304(c))

(2)). The past performance evaluation performed in support of a current source selection does not establish, create or change the existing record and history of the Contractor's past performance on previous contracts; rather, the past performance evaluation process gathers information from customers on how well the Contractor performed on those previous contracts.

Sources of Past Performance Information for Evaluation are as follows:

- Past Performance information may be provided by the Contractor, as solicited
- Past Performance information may be obtained from questionnaires tailored to the circumstances of the acquisition
- Past performance information shall be obtained from any other sources available to the Government to include, but not limited to,
- Past Performance Information Retrieval System (PPIRS), Federal Awardee Performance and Integrity Information System

(FAPIS), Electronic Subcontract Reporting System (eSRS), or other databases, interviews with Program Managers, Contracting Officer's and Contracting Officer Representatives, Expert Technical Representatives and the Defense Contract Management Agency.

Performance Confidence Assessment: The Government will review all past performance information collected and determine the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into a Performance Confidence Assessment. A separate quality assessment rating is not required; rather, the Past Performance Confidence Assessment rating is based on the Offeror's overall record of Recency, Relevancy, and Quality of performance.

Performance Confidence Assessment ratings are as follows:

Table 4: Performance Confidence Ratings

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

M-5 FACTOR 5: SMALL BUSINESS PARTICIPATION

(1) Offerors completion of the Small Business Participation Plan (Section J, RFP Attachment 5) will be evaluated based on the following descriptions. As part of this evaluation, the Government will consider each offeror's commitment to use small business:

a) To be acceptable, the offeror must demonstrate a plan to meet or exceed its goals for the participation of small business firms (including those in socioeconomic categories as defined in FAR Part 19) in terms of the percentage and dollars of the total acquisition value. If the offeror submits less than the minimum goals in any of the categories, the offeror shall provide a detailed explanation and address how the offeror will attempt to increase small business subcontracting in any category where the proposed goal is less than the minimum subcontracting goal

b) To be acceptable, the offeror must describe its use of small businesses in terms of the complexity and variety of work to be performed.

c) To be acceptable, the offeror must describe the type of agreements and/or commitments to use small business firms under the contract.

d) To be acceptable, the offeror must explain the specific initiatives and strategies that will be used under the contract to enhance small business utilization and capabilities.

e) To be acceptable, the offeror must describe the process used to ensure the proper flow down of requirements, process management and performance assessments of small business utilization at the first tier.

(2) The Government will assess the offeror's submission to this factor for adequacy of proposed Small Business Participation. To be acceptable, the offeror shall provide a complete and responsive small business participation volume and will be assigned adjectival ratings in accordance with the Table below. In accordance with 13 C.F.R. 125.3(g)(3), a small business concern submitting an offer will be rated Acceptable for this Small Business Participation Factor, even if they elect not to submit any information in connection with this factor.

The following adjectival ratings/descriptions shall be used for the Small Business Participation evaluation factor:

Table 5: SBP Ratings

Adjectival Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Unacceptable	Proposal does not indicate an adequate approach and understanding of small business objectives.

M-6 FACTOR 6: COST/PRICE

(1) Although cost or price is not scored, numerically weighted, or combined with the other evaluation factors to establish an adjectival rating, it will be evaluated for reasonableness and realism. Cost realism is a determination of the probable cost of performance for each Offeror.

The degree of importance of the cost or price factor will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based.

Proposals which are unrealistic in terms of technical or schedule commitments or unrealistically high or low in cost may be deemed reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work, and may be grounds for rejection of the proposal.

In evaluating cost type offers, realism of the Offeror's estimated cost will be considered. "Realism of Estimated Cost" is determined by reference to the costs which the Offerors can reasonably be expected to incur in performance of the Contract in accordance with the offer. Therefore, in addition to generating a probable cost for each cost reimbursement CLIN based on the Offeror's proposed approach (i.e., the CLIN's evaluated cost), this cost realism analysis may identify areas of cost realism risk where no substantiating cost realism data supports the proposed costs such as proposals that include unrealistically low labor rates or that do not otherwise demonstrate cost realism.

The purpose of the evaluation is to: (1) verify the Offerors' understanding of the requirements; (2) assess the degree to which the cost proposal reflects the approaches and/or risk that the Offerors will provide the supplies or services at the proposed costs; and (3) assess the degree to which the cost included in the cost proposal accurately represents the effort described in the technical proposal. The proposed costs may be adjusted for purposes of evaluation based on the results of the cost realism evaluation. Unrealistic rates will be considered in the risk assessment and may result in a reduced technical rating.

(2) It is intended to reimburse support and subcontract costs on the basis of actual reasonable and allowable costs incurred plus G&A. The Offeror shall propose the total plug amount listed in Section B, and add their Indirect Rates to the RFP specified amounts.

If proposed indirect rates on support and subcontract costs are not consistent with DCAA information for that Offerors, the proposed rates may be adjusted for realism when applied for evaluation purposes.

Evaluation of FAR 52.217-8 pricing: The pricing for this will be evaluated consistent with the evaluation of the rest of the proposal. The price of this evaluation, however, will not be included in the Government's total evaluated cost, and will not be included in the award amount.

M-7 COMPETITIVE RANGE DETERMINATION AND DISCUSSIONS

The Government intends to make award without discussions. However, the Government reserves the right to conduct discussions if deemed necessary. If conducted, discussions will be IAW FAR 15.306.

If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

M-8 SOLICITATION REQUIREMENTS, TERMS AND CONDITIONS

Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as factors. Failure to comply with the terms and conditions of the solicitation may result in the Offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and

conditions and must provide complete supporting rationale. Offerors failure to complete or omission of required data for evaluation or award may make them ineligible for award evaluation and/or subsequent contract award.

M-9 DISCUSSION/FINAL PROPOSAL REVISIONS.

If discussions are held, the Contracting Officer shall indicate to, or discuss with, each Offerors still being considered for award, significant weaknesses, deficiencies, and other aspects of its proposal (such as cost, price, technical approach, past performance, and terms and conditions) that could, in the opinion of the Contracting Officer, be altered or explained to enhance materially the proposal's potential for award.

The scope and extent of discussions are a matter of Contracting Officer judgment. At the conclusion of discussions, each Offerors still in the competitive range shall be given an opportunity to submit a final proposal revision. A final cut-off date for receipt of final proposal revisions will be established by the Contracting Officer.

(1) The Contract(s) resulting from this solicitation will be awarded to the responsible Offerors(s) whose offer(s), conforming to the solicitation, is determined most advantageous to the Government, cost and other factors considered.

M-10 ONLY ONE OFFEROR

In the event that only one proposal is received, the Government reserves the right to conduct a less formal evaluation of the proposal. A technical analysis of the proposal will be performed to determine the extent in which it meets the elements/requirements contained in the evaluation factors for award.

FAR Clauses Incorporated by Full Text

52.217-3 Evaluation Exclusive of Options.

(Apr 1984)

As prescribed in 17.208(a), insert a provision substantially the same as in the following in solicitations when the solicitation includes an option clause and does not include one of the provisions prescribed in 17.208 (b) or (c):

EVALUATION EXCLUSIVE OF OPTIONS (APR 1984)

The Government will evaluate offers for award purposes by including only the price for the basic requirement; *i.e.*, options will not be included in the evaluation for award purposes.

(End of provision)